

Authorities captured in the summaries

Which precedents the courts used, how often, and for what proposition. Ranked by the number of distinct SCJ cases that invoked each authority. · 5 September 2026

1,271 SUMMARIES IN CORPUS	278 WITH CAPTURED AUTHORITIES	764 TOTAL CITATIONS	467 DISTINCT AUTHORITIES	17 USED IN 5+ CASES	7 USED IN 10+ CASES
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Drawn from the **authorities** field of every lean summary in the Supply Code JSON corpus. Name, reporter and Indian Kanoon variants of the same decision are clustered so a case such as *Ashok Kumar v. State of U.P.* (2008 (6) ADJ 660 (DB)) is counted once. Rank is by distinct citing cases, not raw mentions. Authorities used in two or more cases are tabulated in full; those cited once appear in a compact register at the end of each court table. Where a later summary recorded the citation but not the proposition, the proposition is taken from the richer citing records of the same authority. Allahabad High Court — 108 authorities, 277 citations across 186 cases · Supreme Court — 315 authorities, 438 citations across 154 cases · Other courts — 44 authorities, 49 citations across 31 cases.

Leading — 10 or more cases Extensive — 5 to 9 cases Recurring — 2 to 4 cases Isolated — a single case

Most extensively used authorities (all forums)

#	CASES	AUTHORITY	LEADING PROPOSITION TAKEN FROM IT
1	41	<i>Ashok Kumar v. State of U.P.</i> All HC 2008 (6) ADJ 660 (DB)	Clause 6.8 of the Supply Code, 2005 prescribes a mandatory, detailed procedure (inspection report, show-cause notice with 15 working days to reply, personal hearing, and a speaking final order) for assessing unauthorised use of electricity under Section 126; before recording...
2	34	<i>M/s Dev Prayag Paper Mill (Pvt.) v. State of U.P.</i> All HC 2017 (3) ALJ 497	Identical additional-security and clause 4.20 challenges dismissed; followed as the lead order.
3	25	<i>M/s Supreme Ceramics Limited v. Paschimanchal Vidyut Vitran Nigam Ltd.</i> All HC Writ Petition No. 51844 of 2009 (order dated 7.10.2009)	Interim order restraining demand of additional security under the Code pending adjudication.
4	12	<i>Smt. Amrawati Devi v. Purvanchal Vidyut Vitran Nigam Ltd.</i> All HC 2009 (1) ADJ 430 (DB)	Clause 5.6(c)(iii) requires the licensee to apprise the consumer of, and obtain his agreement to, the testing venue (licensee's lab / independent lab / Electrical Inspector) before a sealed meter is tested; the clause operates harshly and is construed strictly, and failure to...

#	CASES	AUTHORITY	LEADING PROPOSITION TAKEN FROM IT
5	11	<i>Seema Mansoor v. U.P. Power Corporation Ltd.</i> All HC 2014 (6) ADJ 672	A licensee must supply on a proper application; every owner or occupier, including a tenant, has a statutory right to obtain electricity under the Electricity Act, 2003 and the Supply Code, 2005, and cannot be refused merely for want of the landlord's consent if an indemnity...
6	10	<i>Isha Marbles v. Bihar State Electricity Board</i> SC (1995) 2 SCC 648	An auction purchaser who is a third party unconnected with the previous consumer is not a "consumer" and cannot be saddled with the previous consumer's electricity dues as a condition of supply, since electricity dues are no charge on the property; what matters is the...
7	10	<i>Sri Chandu Khamaru v. Nayan Malik</i> SC (2011) 12 SCC 314	Under Section 43(1) of the Electricity Act, 2003 a distribution licensee has a statutory duty to supply electricity to an owner or occupier of premises in its area on application, and every owner or occupier has a correlative statutory right to apply for and obtain supply.
8	9	<i>Paschimanchal Vidyut Vitran Nigam Ltd. v. DVS Steels & Alloys Pvt. Ltd.</i> SC (2009) 1 SCC 210	Electricity dues do not constitute a charge on the premises and a transferee cannot be foisted with a predecessor's dues merely by virtue of ownership; however, a distributor may validly stipulate, as a condition for a fresh connection/reconnection, that the predecessor's...
9	8	<i>M/s Vehlina Steels & Alloys Pvt. Ltd. v. Paschimanchal Vidyut Vitran Nigam Ltd.</i> All HC Writ Petition No. 30582 of 2009 (order dated 23 June 2009)	—
10	8	<i>Narinder Chand Hem Raj & Others v. Lieutenant Governor, Administrator, Union Territory, Himachal Pradesh</i> SC 1971 AIR 2399	As applied in the quoted Coordinate Bench: no direction could have been issued against the provisions of the Act and the Code by the Ombudsman.
11	6	<i>Executive Engineer, Southern Electricity Supply Co. of Orissa Ltd. (SOUTHCO) v. Sri Seetaram Rice Mill</i> SC (2012) 2 SCC 108	Section 126 requires the assessing officer to inspect, form a conclusion of unauthorised use, provisionally assess, serve the order, hear objections, and pass a final assessment; a Section 127 appeal lies only against that final order. The High Court may entertain a writ...
12	5	<i>Haryana State Electricity Board v. Hanuman Rice Mills</i> SC (2010) 9 SCC 145	Electricity arrears do not constitute a charge over the property, so a transferee of premises cannot in general law be made liable for the dues of the previous owner/occupier; but where statutory rules or statutory conditions of supply authorise the supplier to demand the...
13	5	<i>M/s Mohit Paper Mills Ltd. & Anr. v. PVVNL & Ors.</i> All HC 2011 (9) ADJ 239	Use of electricity through a tampered meter constitutes 'unauthorised use of electricity' under s.126 Explanation (b), for which assessment can be made, while simultaneously constituting theft under s.135(1)(d), permitting parallel criminal proceedings.

#	CASES	AUTHORITY	LEADING PROPOSITION TAKEN FROM IT
14	5	<i>U.P. Power Corporation Ltd. v. Ombudsmen (Writ-C No. 1003604 of 2008)</i> All HC Writ-C No. 1003604 of 2008, decided 21.03.2023	Sister writ allowed on 21.03.2023 on the same Ombudsman-order question.
15	5	<i>U.P. Power Corporation Ltd. v. Ombudsmen (Writ-C No. 1003605 of 2008)</i> All HC Writ-C No. 1003605 of 2008, decided 21.03.2023	Sister writ allowed on 21.03.2023 on the same Ombudsman-order question.

Table 1 — Allahabad High Court 108 authorities · 277 citations · 10 used in 5+ cases · 28 used in 2+ cases

Allahabad High Court authorities invoked in the Supply Code corpus, ranked by use. The leading line is Ashok Kumar (Clause 6.8 / s.126 procedure), followed by Dev Prayag and Supreme Ceramics (additional security) and Amrawati Devi (meter testing under Clause 5.6).

#	USED IN	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
1	41 CASES	Ashok Kumar v. State of U.P. 2008 (6) ADJ 660 (DB) Allahabad High Court (DB) Followed 19 · Referred 4 · Distinguished 3 · Not recorded 13 · Relied on 2	PROPOSITION 1 · USED IN 3 CASES Clause 6.8 of the Supply Code, 2005 prescribes a mandatory, detailed procedure (inspection report, show-cause notice with 15 working days to reply, personal hearing, and a speaking final order) for assessing unauthorised use of electricity under Section 126; before recording a conclusion of unauthorised use, the consumer must be given an opportunity of hearing, failing which the assessment/notice is illegal and violates natural justice and Article 14. PROPOSITION 2 · USED IN 2 CASES Before a conclusion of unauthorised use under s.126, the consumer must be told the manner of the alleged use and given an opportunity of defence; a citizen cannot be indicted of unauthorised use (which may also be an offence under s.135) on the vagaries of the licensee's officers. Stern measures against theft do not justify condemnation without that minimum hearing (paras 56–60). PROPOSITION 3 · USED IN 2 CASES Before a provisional assessment under s.126 the assessing officer must disclose the alleged manner of unauthorised use and hear the consumer, then record the UAE conclusion; a separate opportunity is required before final assessment on quantum. Unauthorised use overlapping s.135 cannot be found on the officer's vagaries without a hearing. PROPOSITION 4 · USED IN 2 CASES A writ is entertained without relegation to the alternative remedy where a purely legal/jurisdictional issue (e.g. validity of the notification appointing the assessing officer) is raised, which the assessing/appellate authority cannot decide. <i>+17 further formulations in the citing summaries, to the same effect.</i>	SCJ-040 SCJ-048 SCJ-051 SCJ-057 SCJ-059 SCJ-061 SCJ-069 SCJ-070 SCJ-071 SCJ-111 SCJ-112 SCJ-117 SCJ-121 SCJ-154 SCJ-159 SCJ-165 SCJ-176 SCJ-189 SCJ-192 SCJ-193 SCJ-285 SCJ-286 SCJ-630 SCJ-635 SCJ-644 SCJ-674 SCJ-706 SCJ-710 SCJ-753 SCJ-825 SCJ-869 SCJ-1001 SCJ-1060 SCJ-1207 SCJ-1226 SCJ-1227 SCJ-1236 SCJ-1249 SCJ-1250 SCJ-1251 SCJ-1254

#	USED IN	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
2	34 CASES	<i>M/s Dev Prayag Paper Mill (Pvt.) v. State of U.P.</i> 2017 (3) ALJ 497 Followed 1 · Not recorded 33	PROPOSITION USED Identical additional-security and clause 4.20 challenges dismissed; followed as the lead order.	SCJ-660 SCJ-675 SCJ-679 SCJ-685 SCJ-688 SCJ-690 SCJ-691 SCJ-692 SCJ-693 SCJ-694 SCJ-695 SCJ-696 SCJ-741 SCJ-751 SCJ-752 SCJ-829 SCJ-999 SCJ-1144 SCJ-1157 SCJ-1158 SCJ-1164 SCJ-1176 SCJ-1179 SCJ-1188 SCJ-1192 SCJ-1193 SCJ-1194 SCJ-1195 SCJ-1196 SCJ-1203 SCJ-1210 SCJ-1215 SCJ-1223 SCJ-1228
3	25 CASES	<i>M/s Supreme Ceramics Limited v. Paschimanchal Vidyut Vitran Nigam Ltd.</i> Writ Petition No. 51844 of 2009 (order dated 7.10.2009) Followed 1 · Referred 1 · Not recorded 23	PROPOSITION USED Interim order restraining demand of additional security under the Code pending adjudication.	SCJ-175 SCJ-932 SCJ-1144 SCJ-1157 SCJ-1158 SCJ-1162 SCJ-1164 SCJ-1176 SCJ-1178 SCJ-1179 SCJ-1182 SCJ-1183 SCJ-1185 SCJ-1188 SCJ-1192 SCJ-1193 SCJ-1195 SCJ-1201 SCJ-1202 SCJ-1203 SCJ-1210 SCJ-1215 SCJ-1223 SCJ-1228 SCJ-1255

#	USED IN	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
4	12 CASES	<i>Smt. Amrawati Devi v. Purvanchal Vidyut Vitran Nigam Ltd.</i> 2009 (1) ADJ 430 (DB) Allahabad High Court (DB) Followed 5 · Referred 3 · Distinguished 1 · Not recorded 2 · Relied on 1	PROPOSITION 1 · USED IN 3 CASES Clause 5.6(c)(iii) requires the licensee to apprise the consumer of, and obtain his agreement to, the testing venue (licensee's lab / independent lab / Electrical Inspector) before a sealed meter is tested; the clause operates harshly and is construed strictly, and failure to give a bold, printed notice of the option renders the proceedings illegal. PROPOSITION 2 · USED IN 1 CASE Clause 5.6(c)(iii) requires the consumer's agreement for the choice of testing laboratory (licensee's/independent/Electrical Inspector); this being a harsh provision against the consumer must be construed strictly, and failure to apprise the consumer of this right renders the meter-sealing/testing proceedings irregular and illegal. PROPOSITION 3 · USED IN 1 CASE Basis of the interim order dated 28 October 2009 staying the assessment proceedings; also relied on by the petitioner for the consumer's right, under Paragraph 5.6 of the Supply Code, to have the meter tested by an independent agency. Said to have been affirmed by the Apex Court. PROPOSITION 4 · USED IN 1 CASE Under the 2003 regime (Clauses 5-6 of the Code 2005) the consumer likewise has a right to have a disputed meter tested by the Electrical Inspector, the Nigam's lab or an independent agency, and must be given notice of that option. +4 further formulations in the citing summaries, to the same effect.	SCJ-064 SCJ-071 SCJ-114 SCJ-126 SCJ-153 SCJ-161 SCJ-167 SCJ-202 SCJ-552 SCJ-805 SCJ-825 SCJ-1060
5	11 CASES	<i>Seema Mansoor v. U.P. Power Corporation Ltd.</i> 2014 (6) ADJ 672 Followed 4 · Distinguished 1 · Not recorded 6	PROPOSITION 1 · USED IN 2 CASES A licensee must supply on a proper application; every owner or occupier, including a tenant, has a statutory right to obtain electricity under the Electricity Act, 2003 and the Supply Code, 2005, and cannot be refused merely for want of the landlord's consent if an indemnity bond is submitted. PROPOSITION 2 · USED IN 2 CASES An application for a connection cannot be refused for want of the landlord's consent; on furnishing an indemnity bond, a lessee/tenant/occupier cannot be refused a connection merely for want of consent of the landlord. PROPOSITION 3 · USED IN 1 CASE A tenant/occupier has a legal right to obtain an electricity connection; the licensee is obliged to supply and cannot refuse solely for want of the owner's/landlord's consent. Clause 4.4 and Annexure 4.2 of the U.P. Electricity Supply Code, 2005 were considered. PROPOSITION 4 · USED IN 1 CASE Cited by the petitioner in support of a claim to a separate connection.	SCJ-006 SCJ-027 SCJ-212 SCJ-293 SCJ-342 SCJ-505 SCJ-506 SCJ-511 SCJ-517 SCJ-621 SCJ-623

#	USED IN	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
6	8 CASES	<i>M/s Vehlna Steels & Alloys Pvt. Ltd. v. Paschimanchal Vidyut Vitran Nigam Ltd.</i> Writ Petition No. 30582 of 2009 (order dated 23 June 2009) Not recorded 8	<i>Proposition not recorded in the citing summaries.</i>	SCJ-728 SCJ-729 SCJ-732 SCJ-733 SCJ-740 SCJ-742 SCJ-746 SCJ-856
7	5 CASES	<i>M/s Mohit Paper Mills Ltd. & Anr. v. PVVNL & Ors.</i> 2011 (9) ADJ 239 Followed 5	PROPOSITION 1 · USED IN 1 CASE Use of electricity through a tampered meter constitutes 'unauthorised use of electricity' under s.126 Explanation (b), for which assessment can be made, while simultaneously constituting theft under s.135(1)(d), permitting parallel criminal proceedings. PROPOSITION 2 · USED IN 1 CASE Clauses 8.1 and 8.2 of the Supply Code, 2005 (not Clause 6.8) govern assessment where theft of electricity under s.135 is alleged; the specific provision prevails over the general where two provisions cover overlapping fields. PROPOSITION 3 · USED IN 1 CASE Detailed technical description of the Secure Meter system (Consumer Energy Meter, Meter Reading Instrument, Base Computer Software) and its tamper-logging capability. PROPOSITION 4 · USED IN 1 CASE Mens rea is not a requirement for a Section 126 civil assessment, as distinct from a Section 135 criminal prosecution. <i>+1 further formulation in the citing summaries, to the same effect.</i>	SCJ-051 SCJ-059 SCJ-069 SCJ-111 SCJ-121
8	5 CASES	<i>U.P. Power Corporation Ltd. v. Ombudsmen (Writ-C No. 1003604 of 2008)</i> Writ-C No. 1003604 of 2008, decided 21.03.2023 Followed 5	PROPOSITION USED Sister writ allowed on 21.03.2023 on the same Ombudsman-order question.	SCJ-490 SCJ-491 SCJ-492 SCJ-493 SCJ-494
9	5 CASES	<i>U.P. Power Corporation Ltd. v. Ombudsmen (Writ-C No. 1003605 of 2008)</i> Writ-C No. 1003605 of 2008, decided 21.03.2023 Followed 5	PROPOSITION USED Sister writ allowed on 21.03.2023 on the same Ombudsman-order question.	SCJ-490 SCJ-491 SCJ-492 SCJ-493 SCJ-494

#	USED IN	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
10	5 CASES	<i>U.P. Power Corporation Ltd. v. Ombudsmen and 2 others</i> Writ-C No. 1003603 of 2008, decided 21.03.2023 Followed 5	PROPOSITION USED Ombudsman order dated 23.05.2008 set aside: minimum monthly/fixed charges under paragraphs 3.8 and 3.9 and the Tariff Order (s.24, Reforms Act, 1999) cannot be waived; a consumer prevented from using supply must seek permanent disconnection; the Ombudsman cannot direct contrary to the Act and the Code (Narinder Chand Hem Raj).	SCJ-490 SCJ-491 SCJ-492 SCJ-493 SCJ-494
11	4 CASES	<i>M/s Modern Rice Mill v. MVVNL & Anr.</i> 2012 (1) ADJ 296 Followed 4	PROPOSITION 1 · USED IN 2 CASES A meter manufacturer's own lab cannot be an 'independent laboratory'; testing by the manufacturer amounts to making a person judge in his own cause, given its commercial interest in defending its product's tamper-proof reputation. PROPOSITION 2 · USED IN 1 CASE Clause 5.6(d) mandates a specific procedure before meter testing — information to the consumer of the proposed testing date, an opportunity to be present (personally or through a representative), obtaining signature if present, and a right to dispute the testing under Clause 5.6(c). PROPOSITION 3 · USED IN 1 CASE Same Clause 5.6 meter-testing requirement before finalising an assessment premised on a defective/missing meter.	SCJ-071 SCJ-114 SCJ-126 SCJ-161
12	4 CASES	<i>Smt. Sushama Chowdhary v. U.P. Power Corporation Ltd.</i> Misc. Bench No. 9588 of 2014 (Allahabad HC, DB) Allahabad High Court (DB) Followed 1 · Relied on 2 · Not recorded 1	PROPOSITION 1 · USED IN 2 CASES Section 43(1) casts an affirmative obligation on the licensee to supply an owner or occupier; Clause 4.4 is in aid of that duty, and an occupier who cannot get the owner's consent may furnish an indemnity bond (Annexure 4.2). PROPOSITION 2 · USED IN 1 CASE Clause 4.4 of the Code is in aid of the s.43 duty to supply; an occupier unable to produce the owner's consent (owner-occupier dispute) may obtain a connection on an Indemnity Bond (Annexure 4.2), and a denial merely citing Clause 4.4 without reasons is bad. PROPOSITION 3 · USED IN 1 CASE Section 43 of the Electricity Act, 2003 and the Electricity Supply Code, 2005 considered on grant of connection amid a title dispute.	SCJ-027 SCJ-033 SCJ-190 SCJ-1260

#	USED IN	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
13	3 CASES	<i>Gaurav Sharma v. State of U.P.</i> 2019 (2) ADJ 213 Allahabad High Court (DB) Followed 1 · Relied on 1 · Not recorded 1	PROPOSITION 1 · USED IN 1 CASE Under the U.P. Electricity Supply Code, 2005, an applicant who is not the owner of the premises but is a genuine occupier may obtain an electricity connection by furnishing an Annexure 4.2 indemnity bond (with proof of occupation such as a power of attorney, rent receipt or lease deed), the object being only to deny connections to trespassers/house-grabbers; a connection cannot be refused merely because the owner declines a no-objection certificate, particularly in a family/landlord dispute.	SCJ-033 SCJ-272 SCJ-623
14	3 CASES	<i>M/s Paliwal Alloys (Pvt) Ltd. v. U.P. Power Corporation Ltd.</i> 2009 (7) ADJ 455 Allahabad High Court (DB) Followed 2 · Distinguished 1	PROPOSITION 1 · USED IN 1 CASE Theft of electricity under s.135 is also 'unauthorised use of electricity' for which assessment under s.126 is contemplated and mandatory; the s.135(1A) third proviso (restoration on payment of the 'assessed amount') presupposes a s.126 assessment; a Supply Code procedural provision cannot take away the substantive s.127 right of appeal.	SCJ-069 SCJ-111 SCJ-122
			PROPOSITION 2 · USED IN 1 CASE Applied Clause 6.15/s.56(2)'s two-year limitation to bar recovery of a peak-hour penalty imposed in 2006 for a 2002-2003 violation period.	
			PROPOSITION 3 · USED IN 1 CASE Assessment under Section 126 is also to be made in theft cases, and the consumer has a right of appeal.	
15	3 CASES	<i>Smt. Karuna Jaiswal v. State of U.P.</i> 2018 (9) ADJ 107 (DB) (LB) Allahabad High Court (Lucknow Bench) Referred 3	PROPOSITION USED Bench decision cited in the same catena on natural justice in disciplinary inquiries; no separate holding extracted.	SCJ-017 SCJ-548 SCJ-549

#	USED IN	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
16	3 CASES	<i>Sri Bhagwan Gupta v. Kanpur Electricity Supply Company Ltd.</i> 2005 (2) AWC 1269 Followed 1 · Distinguished 2	PROPOSITION 1 · USED IN 1 CASE Held (in the petitioner's submission) that the pre-2007 rate of one-and-half times the tariff under Section 126(5)/(6) applies where the cause of action (theft) arose before the amendment. PROPOSITION 2 · USED IN 1 CASE In a theft billing, assessment is at one-and-a-half times the tariff under Section 126(6), not under paragraph 6.16.2 of the 2002 Code; Section 126(6) prevails over paragraph 6.17.2. PROPOSITION 3 · USED IN 1 CASE On use of the maximum period where the actual period of unauthorised use cannot be established.	SCJ-047 SCJ-211 SCJ-640
17	3 CASES	<i>State of U.P. v. Aditya Prasad Srivastava</i> 2017 (2) ADJ 554 (DB) (LB) Allahabad High Court (Lucknow Bench) Referred 3	PROPOSITION USED Bench decision cited in the same catena on proof of charges in a departmental inquiry; no separate holding extracted.	SCJ-017 SCJ-548 SCJ-549
18	3 CASES	<i>State of U.P. v. Kishori Lal</i> 2018 (9) ADJ 397 (DB) (LB) Allahabad High Court (Lucknow Bench) Referred 3	PROPOSITION 1 · USED IN 2 CASES Bench decision cited in the same catena on the establishment's burden in a departmental inquiry; no separate holding extracted. PROPOSITION 2 · USED IN 1 CASE Same principle on the Establishment's burden to prove charges in a departmental inquiry.	SCJ-017 SCJ-548 SCJ-549
19	2 CASES	<i>Bombay Electric Supply and Transport Undertaking v. Laffans (India) Pvt. Ltd. & Anr.</i> 2005 (3) AWC 2133 (SC) Followed 2	PROPOSITION USED Under the Indian Electricity Act, 1910, the Electrical Inspector is the appropriate person to adjudicate a dispute regarding meter accuracy underlying a bill, functioning as a form of independent statutory arbitration.	SCJ-083 SCJ-086
20	2 CASES	<i>Dakshinanchal Vidyut Vitran Nigam Ltd. v. Vidyut Lokpal, Lucknow</i> Writ Petition No. 4237 (MS) of 2008 Allahabad High Court (Single Judge) Followed 1 · Referred 1	PROPOSITION 1 · USED IN 1 CASE Clause 8 of the UPERC (CGRF & Electricity Ombudsman) Regulations, 2007, in so far as it permits a licensee to represent to the Ombudsman against a CGRF order, is bad in law. PROPOSITION 2 · USED IN 1 CASE (One of the two conflicting Single-Judge decisions that prompted the reference; view consistent with confining the Ombudsman remedy to the consumer.)	SCJ-043 SCJ-049

#	USED IN	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
21	2 CASES	<i>Mirzapur Electric Supply Company Limited v. State of U.P.</i> AIR 1975 All 29 Allahabad High Court (DB) Followed 1 · Relied on 1	PROPOSITION USED Security demanded as a condition of supply is not 'dues' owed as a debt and cannot be recovered as arrears of land revenue under the U.P. Government Electrical Undertakings (Dues Recovery) Act, 1958; the consumer may decline to pay and take the consequence of discontinuance of supply.	SCJ-252 SCJ-697
22	2 CASES	<i>Mohd. Sagir v. Dakshinanchal Vidyut Vitran Nigam Ltd.</i> (2014) 105 ALR 603 Allahabad High Court (DB) Distinguished 1 · Relied on 1	PROPOSITION 1 · USED IN 1 CASE A tampered meter is also a 'defective meter' within Clause 5.6 (read with Clause 5.9(a) (ii)); where tampering (a foreign remote-sensing device) was not visible on inspection and was established only by a subsequent committee's opening of the meter, the consumer had a right under Clause 5.6(c)(iii) to independent testing. PROPOSITION 2 · USED IN 1 CASE Clause 5.6 applies to tampered meters too and the Clause 5.6(c)(iii) testing-venue option must be offered before testing.	SCJ-064 SCJ-161
23	2 CASES	<i>Pankaj Kumar v. Kanpur Electric Supply Company and others</i> C.M.W.P. No. 58317 of 2005, 23.9.2005 Allahabad High Court (Single Judge) Followed 1 · Relied on 1	PROPOSITION 1 · USED IN 1 CASE Interpreting Section 126(6), assessment ought to have been made at one-and-a-half times the tariff and not three times as per the U.P. Electricity Supply Code, 2002. PROPOSITION 2 · USED IN 1 CASE On an identical issue, assessment of unauthorised use/theft is at one-and-a-half times under Section 126(6), not at thrice the tariff under the 2002 Code.	SCJ-678 SCJ-698
24	2 CASES	<i>Ram Autar v. U.P. Power Corporation Ltd.</i> Writ-C No. 11961 of 2012, order dated 23.10.2019 Not recorded 2	<i>Proposition not recorded in the citing summaries.</i>	SCJ-911 SCJ-912
25	2 CASES	<i>Ravi Shanker Giri v. SDO, U.P. Power Corporation Ltd.</i> 2007 (4) AWC 3934 Allahabad High Court (DB) Referred 1 · Overruled 1	PROPOSITION 1 · USED IN 1 CASE Considered in Seema Mansoor on whether a tenant is entitled to a connection in tenanted premises (this Court does not restate the holding). PROPOSITION 2 · USED IN 1 CASE Unless there is consent of the owner of the premises (as required under the Supply Code), electricity connection cannot be granted.	SCJ-115 SCJ-342
26	2 CASES	<i>Satya Narayan v. U.P. Power Corporation Ltd.</i> 2013 (5) ADJ 648 Distinguished 1 · Not recorded 1	PROPOSITION USED Applied Clause 6.15's two-year bar to a stale (12-15 year) electricity-dues recovery.	SCJ-122 SCJ-1213

#	USED IN	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
27	2 CASES	<i>Tehri Girders Ltd. v. Paschimanchal Vidyut Vitran Nigam Ltd.</i> 2009 (77) ALR 669 Allahabad High Court (DB) Followed 2	PROPOSITION 1 · USED IN 1 CASE Clause 4.49 speaks of 'recovery of any dues'; additional security is not a recoverable due, its only consequence on non-payment being non-release of load / discontinuance of supply, so Clause 4.49 is not attracted and no bank guarantee for additional security can be demanded. PROPOSITION 2 · USED IN 1 CASE Failure to give additional security does not amount to arrears; additional security cannot be treated as dues recoverable from the consumer (referred to with approval of Mirzapur Electric Supply).	SCJ-250 SCJ-697
28	2 CASES	<i>Wig Brothers (Builders & Engineers) (P) Ltd. & Anr. v. Union of India & Ors.</i> (2003) 3 Company Law Journal 328 (All) Allahabad High Court (DB) Relied on 2	PROPOSITION USED Payment of interest is a necessary corollary to the retention of the amount; it is neither penal nor confiscatory.	SCJ-055 SCJ-1266

Cited in a single case (80 authorities — included for completeness)

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
29	<i>2009 (2) AWC 1189 (DB)</i> 2009 (2) AWC 1189	Not stated in this judgment; cited with the 2002 Code theft definition.	SCJ-637
30	<i>2010 (6) ADJ 315 (DB)</i> 2010 (6) ADJ 315 (DB)	Proposition not recorded.	SCJ-825
31	<i>Abdul Gani & Anr. v. State of U.P. & Ors.</i> Civil Misc. Writ Petition No. 15498 of 2008	An assessment made only on the allegation of a tampered meter seal, without any evidence of how the seal was tampered or theft was effected, cannot stand.	SCJ-051
32	<i>Abdus Salam @ A. Salam v. Election Commission of India</i> 2004 (55) ALR 12	There is nothing rigid about natural justice; the duty to hear does not always mean affording a personal hearing.	SCJ-032
33	<i>Adesh Kumar Jain v. U.P. State Electricity Board</i> 1998 LBESR-1-677	Directors of a company cannot be made personally liable for the company's electricity dues unless the director gives an undertaking or personal guarantee for recovery from his personal assets.	SCJ-129
34	<i>Ajit Singh @ Muraha v. State of U.P. & Others</i> 2006 (56) ACC 433	Reiterates the Bhajan Lal/Satya Pal standard that FIR quashing/stay of arrest is warranted only where no cognizable offence is ex-facie discernible or a statutory restriction on investigation exists.	SCJ-102
35	<i>Allahabad High Court DB, Misc. Bench No. 971 of 2018 (decided 16 January 2018)</i> Misc. Bench No. 971 of 2018 (Allahabad HC, DB)	Where a bank/financial institution auctioned property without enquiring from the electricity department about outstanding dues, it was liable to pay those dues out of the surplus sale proceeds, with directions to decide after notice to the borrower and the department.	SCJ-271

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
36	Allahabad Inter Prises v. State of U.P. Writ-C No. 2788 of 2013 (Allahabad HC, DB)	A 'Protective Load' charge cannot be raised in the absence of any option exercised by the consumer for that facility.	SCJ-026
37	Anand Kumar v. State of U.P. 2023 (3) ADJ 668 (DB)	A tenant, being an 'occupier' under Clause 2(oo), has a statutory right to apply for and obtain a connection on fulfilling the Code's conditions (mainly an indemnity bond). [SCJ-006 in this corpus.]	SCJ-021
38	Ankit Bharti v. State of U.P.	Affirms Vinod Kumar's special-circumstances framework for direct High Court applications under s.438 Cr.P.C.	SCJ-131
39	Arup Sarkar v. C.E.S.C. Limited and Others 2020 STPL 4200 Calcutta (Writ Petition No. 18367 of 2019, decided 11.2.2020)	A litigation lawyer's chambers, used for livelihood based on personal professional skill, is not commercial activity; directed billing under 'Domestic (Urban)' category.	SCJ-133
40	Ashim @ Hassim v. State of U.P. & Another Criminal Misc. Writ Petition No. 18729 of 2023, decided 2 December 2023	(Relied on by the applicant for the need to specify which of several statutory offences is charged.)	SCJ-278
41	Benarsi Silk Palace v. Commr. of Income Tax [1964] 52 ITR 220 (All)	Jurisdiction can be conferred only by statute, not by consent or acquiescence — an assessee cannot confer jurisdiction on the Income Tax Officer by waiving a statutory notice requirement.	SCJ-049
42	Brijesh Kumar Agarwal and another v. State of U.P. and 6 others Writ-C No. 11426 of 2016, order dated 10.3.2016	Prima facie, where the supply agreement shows the company as consumer, Clause 4.3(f)(v) recovery against directors is under challenge as ultra vires s.2(15); the recovery citation is not to be enforced against the director-petitioners, without restraining recovery against the company.	SCJ-473
43	Chandra Kumar Shah & Anr. v. The District Judge & Ors. AIR 1976 All 328	The power to frame regulations/rules cannot be read as a source of authority to enact independent legislation or impose obligations not otherwise envisaged by the parent Act.	SCJ-053
44	Chunvad Pandey v. State of U.P. & Others 2008 (4) ESC 2423	Follows the Supreme Court authorities on delay and laches.	SCJ-068
45	Committee of Management & Anr. v. Regional Deputy Director of Education, Agra & Ors. 2005 (23) LCD 441	An authority lacking power to compel witness attendance/examine on oath, not sitting in public, and whose decisions carry no finality, does not act as a Tribunal notwithstanding its adjudicatory function.	SCJ-138
46	Dhani Ram v. Chief Engineer, Raj Ghat Project Betwa River Board (2013) 5 ADJ 691	On declining to relegate a long-pending, fully-pleaded writ to the alternative remedy.	SCJ-164
47	Dhirendra Kumar Rai v. State of U.P. 2010 (28) LCD 1248	Surveys precedent on suspension power under Rule 4, U.P. Government Servant (Discipline & Appeal) Rules, 1999, holding suspension warranted only for allegations serious enough to attract major penalty if established.	SCJ-116
48	Diwakar Dutt Bhatt v. Life Insurance Corporation of India (1998) 2 UPLBEC 1154	The bar of alternative remedy is a matter of self-imposed discipline; where the petition was entertained and pleadings exchanged, it is inexpedient to dismiss it on that ground.	SCJ-164

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
49	<i>Dr. Arun Kumar v. Nagar Nigam, Bareilly</i> 2017 (2) ADJ 638	Where a statute requires a thing to be done in a particular manner, doing it otherwise is void and illegal.	SCJ-278
50	<i>Dr. Devendra Pratap Singh & Others v. Union of India</i> 2011 (7) ADJ 169 (DB) (LB)	Even while deciding a private dispute, the Court may have regard to the larger public interest.	SCJ-113
51	<i>Executive Engineer, Electricity Distribution Division-II v. Chairman, Permanent Lok Adalat</i> (2015) 113 ALR 603	On the jurisdiction of a Permanent Lok Adalat in electricity disputes.	SCJ-159
52	<i>Ghanshyam Gupta v. United India Insurance Co. Ltd. & Ors.</i> Civil Misc. Writ Petition No. 53188 of 2011, decided 14.9.2011	Follows the same marginal-heading-not-aid-to-construction principle.	SCJ-059
53	<i>Guddi Kesarwani v. State of U.P.</i> Writ-C No. 226 of 2025	Proposition not recorded.	SCJ-409
54	<i>Haryana State Electricity Board Vs. Hanuman Rice Mills and others</i> 2011 (1) AWC 298 (SC)	Proposition not recorded.	SCJ-821
55	<i>Hazi Mohd. Yaseen v. Paschimanchal Vidyut Vitran Nigam Ltd.</i> 2011 (10) ADJ 261 (DB)	Same procedural-fairness principle for s.126/Clause 8.1 assessment.	SCJ-117
56	<i>Heinz India Pvt. Ltd. v. State of U.P.</i> 2012 (4) AWC 3662	Judicial review of administrative action is confined to legality, procedural propriety, and Wednesbury unreasonableness — illegality, irrationality, procedural impropriety, or abuse of power.	SCJ-061
57	<i>Indresh Patel @ Indreshwar Singh v. State of U.P. & 4 Others</i> Criminal Misc. Writ Petition No. 265 of 2023, decided 6.2.2013 (as cited)	The 24-hour requirement in the second proviso to s.135(1-A) is directory; no consequences are specified for its breach.	SCJ-278
58	<i>Inter College Kusmaul, Gorakhpur & Anr. v. State of U.P. & Ors.</i> 2006 (5) AWC 4436	Expounds the maxims <i>lex non cogit ad impossibilia</i> , <i>impotentia excusat legem</i> and <i>nemo tenetur ad impossibilia</i> (the law does not compel the impossible).	SCJ-060
59	<i>Jindal Poly Films Limited v. U.P. Electricity Regulatory Commission, Lucknow</i> Writ Petition No. 2456 (MB) of 2011, decided 15.4.2011	Regulation 8.1(i) of the 2007 Regulations, giving the Distribution Licensee a remedy of representation to the Electricity Ombudsman, is <i>intra vires</i> the Act, 2003, on a 'read as a whole' construction.	SCJ-043
60	<i>Kali Das Wadhvani & Anr. v. Jagjiwan Das & Anr.</i> 1985 (2) ARC 533	Jurisdiction cannot be conferred by consent, acquiescence or waiver where there is none; these factors are relevant only to pecuniary/territorial jurisdiction, not inherent jurisdiction, the absence of which renders a decree a nullity.	SCJ-049
61	<i>Kamil v. State of U.P. & Others</i> 2016 (6) ADJ 11 (DB)	Same procedural-fairness principle for s.126/Clause 8.1 assessment.	SCJ-117

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
62	<i>Khyali Singh Alias Harswaroop v. C.B.I.</i> Criminal Misc. Bail Application No. 3979 of 2024 (order dated 19.03.2024)	Placed for the applicant: a person who does not hold the power to fulfil the request (and, on those facts, was not a public servant) may be enlarged on bail in a Prevention of Corruption Act demand case.	SCJ-543
63	<i>Kunwar Sarvesh Kumar Singh v. Paschimanchal Vidyut Vitran Nigam Ltd. & Ors.</i> 2012 (2) ADJ 509	In theft cases, the Clause 8.1 assessment procedure of the Supply Code, 2005 applies.	SCJ-111
64	<i>L.M.L. Ltd. (U.P. Power Corporation v. L.M.L. Ltd.)</i> 2001 All LJ 2520	Earlier Division Bench decision adjudicating the tariff/guaranteed-supply-surcharge issues between the licensee and consumers.	SCJ-155
65	<i>Lalit Kumar Kapoor v. Kanpur Electricity Supply Company, Kanpur</i> 2011 (10) ADJ 484 : 2012 (2) ALJ 63	Where the period of unauthorised use could not be ascertained, the maximum period was used for the assessment.	SCJ-211
66	<i>LML Ltd., Kanpur v. State of U.P.</i> AIR 2001 Allahabad 321	A tariff approved by the Regulatory Commission alone can be implemented by a licensee, which has no power to alter or vary it; a licensee circular inconsistent with the approved tariff is void and inoperative.	SCJ-094
67	<i>M/s K.L. Concast Pvt. Ltd. v. Paschimanchal Vidyut Vitran Nigam Ltd. and others</i> Writ-C No. 7764 of 2011, decided 24.2.2011	Additional security, being a condition for supply / load-factor rebate, cannot be held as money due or categorised as arrears; the licensee cannot on that footing deny load-factor rebate.	SCJ-697
68	<i>M/s Kesarwani Sheetalaya & Others v. Purvanchal Vidyut Vitran Nigam Ltd. & Others</i> Civil Misc. Writ Petition No. 2309 of 2009, decided 9.10.2009	Where a tapping consumer had itself obtained the original consumer's consent and shared the feeder's construction cost, it stands at par with the original consumer, and a further connection through tapping to another consumer without ITS consent violates Clause 3.4(d)(ii).	SCJ-067
69	<i>M/s Meekin Transmission Ltd., Kanpur and another</i> Writ Tax No. 749 of 2003, decided 14.02.2008	Same principle: absent personal guarantee/undertaking, directors are not personally liable for a defaulting consumer-company's dues.	SCJ-129
70	<i>M/s Shiv Flour and Rice Mills v. State of U.P. & Others</i> Civil Misc. Writ Petition No. 32927 of 2003	Distinguishes 'service line' (Para 2.2(bb)) from 'independent feeder' (Para 2.2(ff)); without fulfilling Clause 3.4(d)'s conditions, the licensee cannot allow tapping of an independent feeder to supply another consumer running an arc/induction furnace, rolling mill or steel plant.	SCJ-067
71	<i>M/s Shri Gautam Motors Pvt. Ltd. v. U.P. Power Corporation Ltd.</i> Writ-C No. 12076 of 2004 (order dated 14.12.2016)	Recited in a 11.5.2023 listing order: Division Bench allowed the writ, relying on Amrawati Devi, Balwant Spinning Mills and Tata Hydro, and set aside a demand dated 19.02.2004 and a recovery bill of Rs. 5,93,227. Not applied in the reserved reasons.	SCJ-552
72	<i>Maa Vind Vasini Industries v. Purvanchal Vidyut Vitran Nigam Ltd.</i> 2008 (1) ADJ 75 : 2008 (2) ALJ 456 (DB)	The Clause 6.8 / s.126 procedure for assessing unauthorised use — recording and disclosing the evidence and affording a hearing — must be followed before a valid assessment/demand can be made.	SCJ-158
73	<i>Misc. Petition No. 31705 of 2009 (Allahabad High Court)</i>	Proposition not recorded.	SCJ-766

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
74	<i>Mohd. Nooruz Zaman v. Madhyanchal Vidyut Vitaran Nigam Ltd.</i> Writ-C No. 525 of 2025 (order dated 21.01.2025)	Cited by the petitioner as a similar flat-owner case.	SCJ-506
75	<i>Narendra Singh Panwar v. Paschimanchal Vidyut Vitran Nigam Limited</i> WRIT-C No. 26355 of 2022, Allahabad High Court, decided 12 January 2023	Approval of a resolution plan does not ipso facto absolve a surety/guarantor of his liability arising out of an independent contract of guarantee; a demand notice for electricity dues issued jointly against the directors of the corporate debtor (as guarantors) cannot be set aside merely because of acceptance of the resolution plan under Section 31.	SCJ-266
76	<i>Om Narain Sahu v. U.P. Power Corporation & Others</i> Writ Petition No. 4545 (M/B) of 2005, order dated 3.1.2013	Directed U.P. Power Corporation to refund dues with interest, constitute a committee for time-bound connection processes, hold disciplinary inquiry against responsible officers, with costs for departmental default/delay.	SCJ-113
77	<i>Pachimanchal Vidyut Vitran Nigam Ltd. v. Electricity Ombudsman & Ors.</i> Writ Petition No. 6411 (MS) of 2012	(The other Single-Judge decision consistent with confining the Ombudsman remedy to the consumer.)	SCJ-043
78	<i>Paschimanchal Vidyut Vitran Nigam Ltd. & Others v. The Appellate Authority/Addl. Commissioner & Anr.</i> Civil Misc. Writ Petition No. 4222 of 2009, decided 26.3.2010	The 2003 Act's scheme does not exclude a Section 126 assessment in theft cases; Section 135(1A)'s third proviso (restoration of supply on deposit of the 'assessed amount') presupposes an assessment under Section 126, covering all categories of unauthorised use including theft; the Section 127 appellate authority's power is co-extensive with the assessing authority's and extends to deciding whether the theft...	SCJ-069
79	<i>Paschimanchal VVNL v. (owner) — judgment dated 18.11.2011 in Writ-C No. 20679 of 2010</i> Writ-C No. 20679 of 2010 (Allahabad HC, 18-11-2011)	The owner of premises is a 'consumer' and can be assessed under s.135 for theft on the premises even if let out; the assessment there was valid; the appeal was remanded only to examine the acquittal under Clause 8.2(X)(G)&(H).	SCJ-179
80	<i>Pawan Kumar Agrawal v. State of U.P. & Others</i> Writ Petition No. 31019 of 2007, judgment dated 12.10.2007	M/s Laxmi Cotsyn Ltd. (a textile-dyeing industry) is not covered by Clause 3.4(a) and cannot be compelled to construct an independent feeder at its own cost; it is entitled to a new connection from the existing mixed feeder.	SCJ-123
81	<i>Poonam Devi (Smt.) v. Chief Engineer, Electricity Board and others</i> (2004) 3 U.P.L.B.E.C. 2292	Similar view as Shakuntala Devi on the legally wedded wife's entitlement over a nominee second wife.	SCJ-080
82	<i>Prachi Leathers v. U.P. Power Corporation Ltd.</i> 2003 (6) AWC 5665	Where power is taken surreptitiously/by theft (rather than under a licensee-sanctioned surcharge arrangement), a penalty rather than a mere surcharge is attracted.	SCJ-094
83	<i>Purvanchal Vidyut Vitran Nigam Ltd. v. Vidyut Lokpal (Electricity Ombudsman)</i> 2008 (5) ALJ 683 : AIR 2008 All 127	An Electricity Ombudsman's award (where conciliation/mediation fails) is akin to an arbitral award and challengeable only on limited grounds similar to s.34 of the Arbitration and Conciliation Act, 1996; a settlement by conciliation is challengeable only for want of jurisdiction or fraud.	SCJ-258
84	<i>Radha Krishna Cold Storage v. State of U.P. & Others</i> Writ Petition No. 19574 of 2008	An appeal under s.127 lies against an order that is in substance an assessment order under s.126, regardless of whether it is mislabelled as passed under s.135.	SCJ-111
85	<i>Raghvendra Garg v. State of U.P. & 5 Ors.</i> Writ C No. 14547 of 2016, order dated 14.9.2016 (DB)	In the absence of a statutory provision, no recovery can be made from the personal assets of a company's director for the company's outstanding dues.	SCJ-090

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
86	<i>Rajesh Kumar Gupta v. State of U.P.</i> 2005 (1) AWC 474	Under the provisions then in force, and in view of a temporary injunction in favour of the tenant, the electricity department could not refuse a connection to the tenant-applicant.	SCJ-236
87	<i>Roshan Lal v. State of U.P.</i> 2009 (9) ADJ 670	Existence of an alternative remedy is a self-imposed discipline, not a jurisdictional bar; dismissing a writ on that ground long after filing and exchange of pleadings may shut out the alternative remedy itself and is to be avoided.	SCJ-164
88	<i>Sardar Hasan Siddique v. State Transport Appellate Tribunal</i> AIR 1986 All 132	A tribunal of limited jurisdiction cannot derive jurisdiction apart from the statute; no consent can confer it, and any decision by such a tribunal without jurisdiction is a nullity.	SCJ-049
89	<i>Satya Pal v. State of U.P. & Others</i> 2000 Cr.L.J. 569	Same standard as above (earlier Full Bench).	SCJ-102
90	<i>Seema Manoor v. U.P. Power Corporation Ltd.</i> (2015) 1 All LJ 44	Proposition not recorded.	SCJ-521
91	<i>Shakuntala Devi (Smt.) v. Executive Engineer, Electricity Transmission Ist, U.P. Electricity Board, Allahabad</i> (2001) 1 U.P.L.B.E.C. 8691	A nomination in favour of a second wife cannot defeat the legally wedded first wife's claim to retiral benefits, provident fund, and Dying-in-Harness appointment.	SCJ-080
92	<i>Smt. Chandrawati v. U.P. State Electricity Board</i> 1986 All LJ 1451	Where no notice of demand was admittedly served, the consumer is entitled to a mandamus restraining recovery under the demand and recovery certificates.	SCJ-170
93	<i>Smt. Pawan Jha @ Priya Jha v. State of U.P.</i> (2011) 5 All WC 5176	There is no basic difference between a private sale and a development-authority allotment for arrears purposes; applying DVS Steels and Hanuman Rice Mills, the licensee may insist on clearance of the premises' arrears before a fresh connection.	SCJ-248
94	<i>Smt. R.S. Khan v. State of U.P. & Ors.</i> 2005 All. C.J. 985	Cited by the petitioner regarding the 2004 assessment proceedings and subsequent orders in the connected writ litigation.	SCJ-047
95	<i>State of U.P. v. Brij Bhushan Sharma</i> Writ Petition No. 474 (SB) of 2011 (Allahabad HC, DB)	The practice of the State filing frivolous writ petitions challenging tribunal orders is deprecated.	SCJ-039
96	<i>State of U.P. v. Suresh Kumar</i> Writ Petition No. 506 (S/B) of 2011 (Allahabad HC, DB)	The State and its instrumentalities should refrain from filing frivolous petitions that waste the Court's time.	SCJ-039
97	<i>Tanveer Azam v. State of U.P.</i> Writ Petition No. 701425 of 2013, decided 03.01.2014	Considered in Seema Mansoor on the same tenant-connection issue (this Court does not restate the holding).	SCJ-342
98	<i>Tanveer Azam v. State of U.P. & Others (also cited as Iftikhar Ahsan v. State of U.P.)</i> Writ Petition No. 71425 of 2013, order dated 3.1.2014	Same as Ravi Shankar Giri — owner's consent required under the Code for grant of electricity connection.	SCJ-115

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
99	<i>Torrent Power Ltd. v. State of U.P.</i> Civil Misc. Writ Petition No. 41139 of 2012, decided 4-12-2013 (Allahabad HC)	A Permanent Lok Adalat can entertain a compoundable-offence electricity dispute for conciliation, but on failure of conciliation cannot decide it on merits under s.22-C(8), because that provision ousts adjudicatory jurisdiction over any dispute relating to an offence irrespective of compoundability.	SCJ-159
100	<i>U.P. State Electricity Board v. Smt. Lakshmi Devi Sehgal & Anr.</i> AIR 1977 All 499	Under the Electricity (Supply) Act, 1948, a distinction is drawn between a 'main transmission line' and a 'service line'; a prospective consumer bears only the cost of the service line, a transformer is not part of the service line, and once supply has commenced the Board must maintain the service line.	SCJ-708
101	<i>Varun Kumar Yadav v. State of U.P. & Others</i> 2025 (7) ADJ 710	The 24-hour lodging requirement for a theft complaint is mandatory; a thing required to be done in a particular manner is void if done otherwise.	SCJ-278
102	<i>Vijay Pal Singh & Another v. Dakshinanchal Vidyut Vitran Nigam Ltd & others</i> Writ - C No. 60987 of 2005, 29.3.2010	Unamended Code Clause 8.2(iv) assessing theft at three times the tariff was contrary to Section 126(6) (1.5 times) and ultra vires by Section 174; the petitioner was directed to pay 1.5 times the tariff applicable on the checking date. The effect of the 15.6.2007 amendment of s.126(6) to twice, without a matching Code amendment, was left open.	SCJ-678
103	<i>Vinod Kumar v. State of Uttar Pradesh</i>	Sets out the special-circumstances test for entertaining a s.438 Cr.P.C. application directly before the High Court without first approaching the Court of Sessions.	SCJ-131
104	<i>Vishanji Tokarsi v. Collector, Kanpur Nagar</i> 2001 (43) ALR 96	Once a demand notice is sent by registered post under the 1958 Dues Recovery Act, a claim of non-service/non-receipt cannot be accepted; Explanation 1 to s.3 deems registered-post dispatch sufficient service.	SCJ-122
105	<i>Vivekanand Yadav v. State of U.P. & Anr.</i> 2010 (10) ADJ 1 (FB)	Sets out the complete procedural framework for preliminary/fact-finding enquiry and final removal enquiry under s.95(1)(g) of the U.P. Panchayat Raj Act, 1947 and the 1997 Enquiry Rules, including who qualifies as 'Enquiry Officer'.	SCJ-140
106	<i>Western Electricity Supply Co. of Orissa Ltd. v. Baba Baijanath Roller and Flour Mill (P) Ltd.</i> (2014) 105 ALR 762 (SC)	Section 26 is relevant only to a dispute about the correctness of a meter; a question of fraud/tampering falls outside it.	SCJ-262
107	<i>Writ-C No. 39082 of 2018 (Allahabad High Court, order dated 20.12.2018)</i>	Proposition not recorded.	SCJ-554
108	<i>Writ-C No. 67768 of 2009</i> Writ-C No. 67768 of 2009 (Allahabad High Court, 05.01.2026)	Proposition not recorded.	SCJ-322

Table 2 — Supreme Court of India 315 authorities · 438 citations · 7 used in 5+ cases · 55 used in 2+ cases

Supreme Court authorities, ranked by use. Recurring themes include the duty to supply (Chandu Khamaru), successor liability for electricity arrears (Isha Marbles, DVS Steels), unauthorised-use assessment (SOUTHCO), and the alternative-remedy bar (Whirlpool).

#	USED IN	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
1	10 CASES	<i>Isha Marbles v. Bihar State Electricity Board</i> (1995) 2 SCC 648 Followed 4 · Referred 2 · Distinguished 4	PROPOSITION 1 · USED IN 3 CASES An auction purchaser who is a third party unconnected with the previous consumer is not a "consumer" and cannot be saddled with the previous consumer's electricity dues as a condition of supply, since electricity dues are no charge on the property; what matters is the contract of the erstwhile consumer, which cannot be enforced against a third party. PROPOSITION 2 · USED IN 2 CASES A new purchaser who had no contract with the electricity supplier before purchase cannot be said to be a consumer or occupier under the Electricity Act and, for a new connection, cannot be treated as a defaulter on the previous owner's dues. PROPOSITION 3 · USED IN 1 CASE Absent a charge over the property or a statutory rule authorising a demand for the previous occupant's dues, an auction-purchaser seeking a fresh connection cannot be required to clear the pre-sale arrears; such a purchaser is not a 'consumer' liable for the predecessor's contractual dues. PROPOSITION 4 · USED IN 1 CASE A purchaser of a unit in a statutory auction who had no connection with the original consumer is not bound by the personal agreement of, and is not statutorily liable to clear the personal dues of, the erstwhile consumer. <i>+3 further formulations in the citing summaries, to the same effect.</i>	SCJ-031 SCJ-037 SCJ-122 SCJ-127 SCJ-225 SCJ-229 SCJ-268 SCJ-271 SCJ-655 SCJ-681

#	USED IN	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
2	10 CASES	<i>Sri Chandu Khamaru v. Nayan Malik</i> (2011) 12 SCC 314 Followed 1 · Applied 1 · Relied on 4 · Not recorded 4	PROPOSITION 1 · USED IN 3 CASES Under Section 43(1) of the Electricity Act, 2003 a distribution licensee has a statutory duty to supply electricity to an owner or occupier of premises in its area on application, and every owner or occupier has a correlative statutory right to apply for and obtain supply. PROPOSITION 2 · USED IN 2 CASES A tenant/occupier is entitled to an electricity connection and the owner's consent is not an indispensable precondition; the licensee's statutory duty to supply cannot be defeated for want of the owner's consent. PROPOSITION 3 · USED IN 1 CASE A consumer has a statutory right under the Electricity Act, 2003 to apply for and obtain a supply of electricity, and the distribution licensee has a corresponding statutory obligation to supply it, notwithstanding a private dispute over the passage/right of way for the line. PROPOSITION 4 · USED IN 1 CASE Cited by the petitioner in support of a claim to a separate connection.	SCJ-027 SCJ-033 SCJ-067 SCJ-190 SCJ-210 SCJ-265 SCJ-505 SCJ-506 SCJ-511 SCJ-517

#	USED IN	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
3	9 CASES	<i>Paschimanchal Vidyut Vitran Nigam Ltd. v. DVS Steels & Alloys Pvt. Ltd.</i> (2009) 1 SCC 210 Followed 2 · Applied 1 · Referred 1 · Distinguished 1 · Relied on 4	PROPOSITION 1 · USED IN 2 CASES Electricity dues do not constitute a charge on the premises and a transferee cannot be foisted with a predecessor's dues merely by virtue of ownership; however, a distributor may validly stipulate, as a condition for a fresh connection/reconnection, that the predecessor's arrears be cleared first — such a stipulation (e.g. Clause 4.3(g)/(h) of a Supply Code) is not unreasonable or arbitrary and safeguards the distributor against unscrupulous defaulters absconding to new premises. PROPOSITION 2 · USED IN 2 CASES Though electricity dues are not a charge on the premises and a transferee has no privity with the supplier, when a purchaser seeks a fresh connection the distributor may stipulate clearance of the arrears due on the premises as a condition of supply; if statutory rules govern such conditions the distributor may insist on their fulfilment, and so long as the conditions are not arbitrary or unreasonable courts will not interfere. PROPOSITION 3 · USED IN 2 CASES Electricity dues are not a charge on the premises, but a distributor may stipulate, as a condition of a fresh connection, that the previous occupant's arrears be cleared; if statutory rules govern, they bind the purchaser. Provisions similar to Clause 4.3(g) and (h) of the Electricity Supply Code are necessary to safeguard the distributor. PROPOSITION 4 · USED IN 1 CASE The supply of electricity is a sale of goods between the distributor and the owner/occupier who contracts for supply; a transferee or subsequent occupant with whom the supplier has no privity cannot be asked to pay the dues of a predecessor, as electricity dues are not a charge on the premises, so the supplier can neither sue nor initiate recovery against a purchaser for the vendor's outstanding dues absent a contract to the contrary. <i>+2 further formulations in the citing summaries, to the same effect.</i>	SCJ-031 SCJ-098 SCJ-125 SCJ-127 SCJ-225 SCJ-248 SCJ-268 SCJ-271 SCJ-1062
4	8 CASES	<i>Narinder Chand Hem Raj & Others v. Lieutenant Governor, Administrator, Union Territory, Himachal Pradesh</i> 1971 AIR 2399 Applied 8	PROPOSITION USED As applied in the quoted Coordinate Bench: no direction could have been issued against the provisions of the Act and the Code by the Ombudsman.	SCJ-490 SCJ-491 SCJ-492 SCJ-493 SCJ-494 SCJ-700 SCJ-701 SCJ-702

#	USED IN	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
5	6 CASES	<i>Executive Engineer, Southern Electricity Supply Co. of Orissa Ltd. (SOUTHCO) v. Sri Seetaram Rice Mill</i> (2012) 2 SCC 108 Followed 4 · Distinguished 1 · Relied on 1	PROPOSITION 1 · USED IN 1 CASE Section 126 requires the assessing officer to inspect, form a conclusion of unauthorised use, provisionally assess, serve the order, hear objections, and pass a final assessment; a Section 127 appeal lies only against that final order. The High Court may entertain a writ against a provisional assessment on a jurisdictional issue, but must then remand merits to the assessing officer and not determine the demand. ----- PROPOSITION 2 · USED IN 1 CASE Sections 126-127 of the Electricity Act, 2003 constitute a complete code; 'unauthorised use of electricity' under Explanation (b) is not exhaustively defined by its five sub-clauses and must be purposively construed to cover excess-load consumption regardless of tariff-category change; overdrawal is prejudicial to the public at large as it threatens the entire supply system. ----- PROPOSITION 3 · USED IN 1 CASE Sections 126 and 135 of the 2003 Act operate in different, distinct fields with no common premise in law — s.126 covers unauthorised use even absent dishonest intent (a civil-law remedy without mens rea), while s.135 requires dishonest intent and falls within criminal jurisprudence; s.126 is intended to cover cases 'over and above' those specifically covered by s.135. ----- PROPOSITION 4 · USED IN 1 CASE Only a final order of assessment under s.126(3) is appealable under s.127; a s.126(2) provisional assessment is not, and the High Court should normally decline to interfere with a provisional assessment under Article 226, entertaining it only on true jurisdictional grounds and then remitting the merits to the assessing authority. <i>+2 further formulations in the citing summaries, to the same effect.</i>	SCJ-042 SCJ-061 SCJ-111 SCJ-147 SCJ-163 SCJ-380

#	USED IN	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
6	5 CASES	<i>Haryana State Electricity Board v. Hanuman Rice Mills</i> (2010) 9 SCC 145 Followed 2 · Applied 1 · Distinguished 1 · Relied on 1	PROPOSITION 1 · USED IN 3 CASES Electricity arrears do not constitute a charge over the property, so a transferee of premises cannot in general law be made liable for the dues of the previous owner/occupier; but where statutory rules or statutory conditions of supply authorise the supplier to demand the previous owner/occupier's arrears from a purchaser seeking re-connection or a fresh connection, the supplier can recover the arrears from the purchaser. PROPOSITION 2 · USED IN 1 CASE Electricity arrears are not a charge on the property, but where statutory rules or statutory terms and conditions of supply authorise it, the supplier may demand the previous owner's arrears from a purchaser claiming a fresh/re-connection. PROPOSITION 3 · USED IN 1 CASE Same arrears-follow-premises doctrine applied in the rice-mills line of cases.	SCJ-098 SCJ-125 SCJ-127 SCJ-248 SCJ-268
7	5 CASES	<i>Whirlpool Corporation v. Registrar of Trade Marks, Mumbai</i> (1998) 8 SCC 1 Applied 1 · Referred 1 · Relied on 3	PROPOSITION 1 · USED IN 3 CASES Alternative statutory remedy does not bar a writ where there is a breach of natural justice, enforcement of fundamental rights, want of jurisdiction, or a challenge to vires; exhaustion is a rule of discretion, not law. PROPOSITION 2 · USED IN 2 CASES Alternative statutory remedy does not bar a writ under Article 226 in at least three contingencies — enforcement of fundamental rights, violation of natural justice, or an order wholly without jurisdiction / where the vires of an Act is challenged; exhaustion is a rule of policy, convenience and discretion, not of law.	SCJ-032 SCJ-153 SCJ-163 SCJ-165 SCJ-706

#	USED IN	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
8	4 CASES	<i>Ahmedabad Electricity Co. Ltd. v. Gujarat Inns (P) Ltd.</i> (2004) 3 SCC 587 Supreme Court (Three-Judge Bench) Followed 1 · Distinguished 2 · Relied on 1	PROPOSITION 1 · USED IN 1 CASE In the absence of any statutory provision, an auction-purchaser applying for a fresh connection cannot be fastened with the previous owner's electricity dues, and a fresh connection cannot be denied on that ground. PROPOSITION 2 · USED IN 1 CASE In case of a fresh connection, though the premises are the same, auction-purchasers cannot be held liable to clear arrears incurred by previous owners absent a specific statutory provision. PROPOSITION 3 · USED IN 1 CASE Past electricity dues are not a charge over the property; the auction-purchaser may seek supply of energy without being saddled with the previous owner's dues. PROPOSITION 4 · USED IN 1 CASE An auction purchaser cannot be denied power supply for non-payment of arrears by the erstwhile company.	SCJ-012 SCJ-054 SCJ-127 SCJ-225
9	4 CASES	<i>Bar Council of India v. Union of India</i> (2012) 8 SCC 243 Referred 1 · Relied on 3	PROPOSITION 1 · USED IN 2 CASES Permanent Lok Adalats under Chapter VI-A of the LSA Act, 1987 have jurisdiction over disputes concerning public utility services (including supply of power) up to a pecuniary limit, in addition to and not in derogation of other fora, before the dispute is brought to a court. PROPOSITION 2 · USED IN 1 CASE The Permanent Lok Adalat mechanism (Chapter VI-A, Legal Services Authorities Act, 1987) for public-utility disputes provides a speedy remedy and, failing settlement, may decide on merits; it is in addition to, not in derogation of, fora created under special statutes. PROPOSITION 3 · USED IN 1 CASE On the nature and scope of the Legal Services Authorities / Lok Adalat framework.	SCJ-019 SCJ-025 SCJ-159 SCJ-249
10	4 CASES	<i>Duncans Industries Ltd. v. AJ Agrochem</i> (2019) 9 SCC 725 Followed 1 · Referred 3	PROPOSITION 1 · USED IN 3 CASES A special enactment's requirement (there, s.16-G of the Tea Act, 1953, requiring prior Central Government consent for winding-up) is overridden by the IBC. PROPOSITION 2 · USED IN 1 CASE A special enactment's requirement is overridden by the IBC.	SCJ-054 SCJ-100 SCJ-157 SCJ-160

#	USED IN	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
11	4 CASES	<i>Ghanshyam Mishra & Sons (P) Ltd. v. Edelweiss Asset Reconstruction Co. Ltd.</i> (2021) 9 SCC 657 Followed 2 · Applied 1 · Referred 1	PROPOSITION 1 · USED IN 2 CASES Once a resolution plan is approved under s.31(1), all claims not part of it stand extinguished and are frozen and binding on all stakeholders including governments and local authorities; the 2019 amendment to s.31 is clarificatory/declaratory and effective from the Code's inception. PROPOSITION 2 · USED IN 1 CASE Once a resolution plan is duly approved by the Adjudicating Authority under Section 31(1), the claims provided in the plan stand frozen and bind the corporate debtor and all stakeholders; all claims not part of the plan stand extinguished and no person may initiate or continue proceedings in respect of a claim not part of the plan. Statutory dues owed to the Central/State Government or local authority, if not part of the plan, also stand extinguished. PROPOSITION 3 · USED IN 1 CASE Explains the legislative intent behind IBC s.238's overriding effect and the finality/clean-slate assurance given to a resolution applicant.	SCJ-054 SCJ-157 SCJ-160 SCJ-266
12	4 CASES	<i>K.C. Ninan v. Kerala State Electricity Board & Ors.</i> (2023) 14 SCC 431 Followed 1 · Referred 2 · Distinguished 1	PROPOSITION 1 · USED IN 2 CASES Electric utilities can create a charge over premises by subordinate legislation/statutory conditions of supply, enabling recovery of a previous owner's electricity arrears from a subsequent transferee; in general law absent such a condition, arrears do not automatically become a charge. PROPOSITION 2 · USED IN 1 CASE Invoked in the reproduced 17.1.2024 order as a later three-judge decision said to have distinguished Rahamatullah Khan. PROPOSITION 3 · USED IN 1 CASE Electricity constitutes a 'public good', and the courts' interpretation of the law must foster this position.	SCJ-005 SCJ-054 SCJ-064 SCJ-384

#	USED IN	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
13	4 CASES	<i>State of Bihar v. P.P. Sharma</i> 1992 SCC (Cr.) 192 Followed 3 · Relied on 1	PROPOSITION 1 · USED IN 1 CASE A person against whom mala fides or bias is imputed must be impleaded eo nomine and given an opportunity to meet the allegation; absent this, no enquiry into mala fides can be made. PROPOSITION 2 · USED IN 1 CASE Reaffirms the limited scope of s.482 Cr.P.C. quashing, confined to cases where no offence is disclosed on the face of the record. PROPOSITION 3 · USED IN 1 CASE Only those cases in which no prima facie case is made out can be considered on an application under section 482 Cr.P.C. PROPOSITION 4 · USED IN 1 CASE Limited scope of inherent-power quashing; disputed factual defences are for trial.	SCJ-051 SCJ-142 SCJ-343 SCJ-539
14	4 CASES	<i>U.P. Power Corporation Ltd. v. Anis Ahmad</i> (2013) 8 SCC 491 Followed 1 · Distinguished 1 · Not recorded 2	PROPOSITION 1 · USED IN 1 CASE The Electricity Supply Code under s.50 need not provide, and does not relate to, assessment of charges for 'unauthorised use of electricity' under Section 126 or offences under Sections 135-140; these fall within Section 126/127's own separate statutory scheme. PROPOSITION 2 · USED IN 1 CASE Proceedings before a District Consumer Forum are not maintainable in view of this decision (as invoked by the petitioners).	SCJ-147 SCJ-406 SCJ-877 SCJ-966
15	3 CASES	<i>Belwal Spinning Mills Ltd. v. U.P. State Electricity Board</i> (1997) 6 SCC 740 Followed 1 · Referred 2	PROPOSITION 1 · USED IN 1 CASE A meter-correctness dispute is decided by the Electrical Inspector, who may assess consumption for the preceding six months where the meter has ceased to be correct. PROPOSITION 2 · USED IN 1 CASE On the basis on which electricity charges/dues may be levied and the limits of the Board's power to raise demands. PROPOSITION 3 · USED IN 1 CASE Named only as a case relied on in Gautam Motors; no ratio extracted.	SCJ-202 SCJ-262 SCJ-552

#	USED IN	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
16	3 CASES	<i>Innovative Industries Ltd. v. ICICI Bank</i> (2018) 1 SCC 407 Followed 1 · Referred 2	PROPOSITION 1 · USED IN 1 CASE Section 238 of the IBC, containing the widest possible non-obstante clause, ensures that no right of the corporate debtor under any other law can come in the way of the Code. PROPOSITION 2 · USED IN 1 CASE The IBC, by its non-obstante clause (Section 238), has overriding effect over any other law for the time being in force in case of inconsistency. PROPOSITION 3 · USED IN 1 CASE The IBC is a complete, self-contained code with overriding effect over inconsistent State/other laws.	SCJ-054 SCJ-160 SCJ-267
17	3 CASES	<i>Khem Chand v. Union of India</i> AIR 1958 SC 300 Referred 2 · Relied on 1	PROPOSITION 1 · USED IN 1 CASE A 'reasonable opportunity of hearing' includes the opportunity to defend oneself by cross-examining the witnesses produced against him, to examine himself or other witnesses in support of his defence, and to make representation as to why the proposed action should not be taken. PROPOSITION 2 · USED IN 1 CASE A 'reasonable opportunity' of showing cause includes an opportunity of a personal hearing (in the service-inquiry context). PROPOSITION 3 · USED IN 1 CASE Lays down the content and standard of 'reasonable opportunity' of hearing to be afforded before an adverse order.	SCJ-032 SCJ-047 SCJ-1268
18	3 CASES	<i>Madhya Pradesh Electricity Board v. Smt. Basantibai</i> (1988) 1 SCC 23 Followed 3	PROPOSITION 1 · USED IN 2 CASES A dispute over fraud in tampering with a meter, manipulating the supply line, or breaking the meter's body seal falls outside s.26(6) of the Indian Electricity Act, 1910; an Electrical Inspector has no jurisdiction over such fraud disputes, which are distinct from genuine meter-correctness/defectiveness disputes. PROPOSITION 2 · USED IN 1 CASE Where there is no allegation of tampering, a dispute whether a meter is correct or faulty falls under s.26(6) of the IEA 1910 and must be decided by the Electrical Inspector, who alone may estimate the energy consumed (not exceeding six months) and fix the amount; the Board cannot itself raise or enforce a supplementary bill pending that determination.	SCJ-151 SCJ-167 SCJ-262

#	USED IN	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
19	3 CASES	<i>Paschimanchal Vidyut Vitran Nigam Ltd. v. Raman Ispat (P) Ltd.</i> (2023) 10 SCC 60 Followed 2 · Relied on 1	PROPOSITION 1 · USED IN 2 CASES Section 238 IBC (non-obstante) overrides the Electricity Act, 2003; the s.53 waterfall places government dues below secured/operational creditors, and Rainbow Papers (which did not notice s.53 and arose in resolution, not liquidation) is distinguishable. PROPOSITION 2 · USED IN 1 CASE In an IBC liquidation, the electricity utility is a secured creditor whose claim for arrears (secured by the Supply Code's charge) must be classified and paid per the s.53 waterfall mechanism; IBC s.238 overrides the Electricity Act/Supply Code despite their own non-obstante provisions (ss.173-174).	SCJ-054 SCJ-157 SCJ-160
20	3 CASES	<i>PTC India Ltd. v. Central Electricity Regulatory Commission</i> (2010) 4 SCC 603 Supreme Court (Constitution Bench) Referred 2 · Relied on 1	PROPOSITION 1 · USED IN 1 CASE Tariff/price fixation is legislative in character unless the statute makes it quasi-judicial for specified purposes (as tariff fixation under Section 62 is made appealable under Section 111). PROPOSITION 2 · USED IN 1 CASE Tariff fixation under Section 62 is quasi-judicial (and appealable under s.111), while Section 61 is the enabling provision for framing generic regulations. PROPOSITION 3 · USED IN 1 CASE The term 'tariff', though undefined in the Electricity Act, 2003, includes not only rate-fixation but also the rules and regulations relating to it.	SCJ-010 SCJ-073 SCJ-147
21	3 CASES	<i>R.P. Kapur v. State of Punjab</i> AIR 1960 SC 866 Followed 3	PROPOSITION 1 · USED IN 2 CASES Sets out the settled categories of cases in which the High Court's inherent power under s.482 Cr.P.C. may be exercised to quash criminal proceedings. PROPOSITION 2 · USED IN 1 CASE Only those cases in which no prima facie case is made out can be considered on an application under section 482 Cr.P.C.	SCJ-142 SCJ-343 SCJ-539
22	3 CASES	<i>Roop Singh Negi v. Punjab National Bank</i> (2009) 2 SCC 570 Relied on 3	PROPOSITION 1 · USED IN 2 CASES Cited with Saroj Kumar Sinha and Kharak Singh for the establishment's obligation to prove charges by legal evidence in a departmental inquiry. PROPOSITION 2 · USED IN 1 CASE A finding of misconduct cannot rest on mere allegations/complaints unsupported by legal evidence; the charge must be proved.	SCJ-017 SCJ-548 SCJ-549

#	USED IN	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
23	3 CASES	<i>State of Haryana v. Bhajan Lal</i> AIR 1992 SC 604 Followed 3	PROPOSITION 1 · USED IN 1 CASE Courts should not interfere with investigation or quash an FIR unless no cognizable offence is ex-facie discernible from the allegations, or a statutory restriction bars the police from investigating. PROPOSITION 2 · USED IN 1 CASE Illustrative categories for quashing; interference is not warranted where the FIR/charge-sheet discloses a cognizable offence. PROPOSITION 3 · USED IN 1 CASE Illustrative categories in which inherent power under s.482 Cr.P.C. may be exercised to quash (quoted in full).	SCJ-102 SCJ-343 SCJ-539
24	3 CASES	<i>State of U.P. v. Mohd. Nooh</i> AIR 1958 SC 86 Referred 3	PROPOSITION USED The rule requiring exhaustion of statutory remedies before a writ is one of policy, convenience and discretion, not of law; certiorari has issued despite the availability of other adequate legal remedies.	SCJ-153 SCJ-165 SCJ-706
25	3 CASES	<i>State of Uttar Pradesh v. Saroj Kumar Sinha</i> (2010) 2 SCC 772 Relied on 3	PROPOSITION USED Cited for the settled principle that in a departmental inquiry the establishment must prove the charges by leading evidence; the inquiry officer is not to treat the charge-sheet as self-proving.	SCJ-017 SCJ-548 SCJ-549
26	3 CASES	<i>State of Uttaranchal v. Kharak Singh</i> (2008) 8 SCC 236 Relied on 3	PROPOSITION USED Cited for natural justice in disciplinary inquiries; evidence must be led and the delinquent given opportunity to meet it.	SCJ-017 SCJ-548 SCJ-549
27	3 CASES	<i>State Tax Officer (1) v. Rainbow Papers Ltd.</i> (2023) 9 SCC 545 Distinguished 3	PROPOSITION 1 · USED IN 2 CASES Certain statutory dues may partake of the character of secured debts under the relevant statute's first-charge provision. PROPOSITION 2 · USED IN 1 CASE A statutory first-charge provision (s.48, Gujarat VAT Act) makes the State a 'secured creditor' under the IBC, since the definition of 'secured creditor' does not exclude government/statutory charges; a resolution plan excluding such dues is not IBC-compliant and not binding on the State.	SCJ-100 SCJ-157 SCJ-160

#	USED IN	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
28	3 CASES	<i>Transmission Corpn. of A.P. Ltd. v. Sri Rama Krishna Rice Mill</i> (2006) 3 SCC 74 Distinguished 1 · Relied on 2	PROPOSITION 1 · USED IN 1 CASE In an electricity assessment dispute, merely taking note of the objections filed is not compliance with the relevant rules; natural justice is not a straitjacket formula and varies with the circumstances. PROPOSITION 2 · USED IN 1 CASE Material relied upon against a consumer must be disclosed to him; mere noting of his objections is not sufficient compliance with natural justice, though no strait-jacket procedure applies. PROPOSITION 3 · USED IN 1 CASE Explains the standard of reasonable opportunity of hearing in the context of an electricity assessment.	SCJ-032 SCJ-047 SCJ-051
29	2 CASES	<i>Gujarat Urja Vikas Nigam Ltd. v. Essar Power Ltd.</i> (2008) 4 SCC 755 Referred 2 · Relied on 1	PROPOSITION 1 · USED IN 1 CASE Section 86(1)(f) of the Electricity Act, 2003 is a special provision for adjudication of disputes between a licensee and a generating company and overrides the general Section 11 of the Arbitration and Conciliation Act, 1996; after the 2003 Act, such disputes can be resolved only by the State Commission or an arbitrator appointed by it. PROPOSITION 2 · USED IN 1 CASE Flagged that the law on Tribunal composition under the Electricity Act may call for review in light of Madras Bar Association (MJ-II). PROPOSITION 3 · USED IN 1 CASE Interpreted s.86(1)(f)'s 'and' as 'or' regarding SERC's licensee-generator dispute-adjudication and arbitration-referral functions.	SCJ-026 SCJ-130
30	2 CASES	<i>A.V. Venkateswaran, Collector of Customs v. Ramchand Sobhraj Wadhwani</i> AIR 1961 SC 1506 Supreme Court (Constitution Bench) Referred 2	PROPOSITION USED The exceptions to the alternative-remedy rule are not exhaustive; a discretion vests in the High Court to entertain a petition and grant relief notwithstanding an adequate alternative remedy.	SCJ-153 SCJ-706
31	2 CASES	<i>Ajmer Vidyut Vitran Nigam Ltd. v. Rahamatullah Khan</i> (2020) 4 SCC 650 Applied 1 · Referred 1	PROPOSITION 1 · USED IN 1 CASE Section 56(2) does not preclude a supplementary demand after two years in case of mistake, but it does not empower disconnection to recover that demand. PROPOSITION 2 · USED IN 1 CASE Invoked in the reproduced 17.1.2024 order for the contention that dues more than two years old cannot be recovered under Section 56.	SCJ-283 SCJ-384

#	USED IN	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
32	2 CASES	<i>Chairman, West Bengal State Electricity Board & Ors. v. Syed Mukbul Hossain & Ors.</i> (2009) 2 SCC 727 Followed 2	PROPOSITION 1 · USED IN 1 CASE In the matter of theft of electrical energy, the assessment is referable to Section 126 and appeal is to be filed under Section 127. PROPOSITION 2 · USED IN 1 CASE In a theft-of-electricity case, the Supreme Court noted the right of appeal under s.127 of the Electricity Act, 2003.	SCJ-069 SCJ-111
33	2 CASES	<i>Dakshin Haryana Bijli Vitran Nigam Ltd. v. Paramount Polymers (P) Ltd.</i> (2006) 13 SCC 101 Referred 1 · Distinguished 1	PROPOSITION 1 · USED IN 1 CASE Where the statutory terms and conditions of supply contain a clause (e.g. Clause 21A) requiring arrears to be cleared before reconnection/new connection, the arrears are recoverable from the transferee; Isha Marbles is distinguishable in such a case. PROPOSITION 2 · USED IN 1 CASE Where a specific clause deals with electricity dues, a transferee who desires the service connection must pay the outstanding dues, and a reconnection or new connection shall not be given to premises with arrears unless so declared in advance.	SCJ-031 SCJ-271
34	2 CASES	<i>Dilip (Dead) through LRs. v. Satish & Others</i> 2022 LiveLaw (SC) 570 Referred 1 · Distinguished 1	PROPOSITION 1 · USED IN 1 CASE Electricity is a basic amenity of which a person cannot be deprived; it cannot be declined to a tenant for the landlord's failure/refusal to issue an NOC — all the supply authority examines is whether the applicant is in occupation. PROPOSITION 2 · USED IN 1 CASE The order names the decision; it does not extract a proposition.	SCJ-021 SCJ-299
35	2 CASES	<i>Dr. Meena Chaudhary @ Dr. Meena P.N. Singh v. BSES Rajdhani Power Ltd.</i> Writ Petition (CrI.) No. 103 of 2013 (SC, 25-06-2013) Followed 1 · Relied on 1	PROPOSITION 1 · USED IN 1 CASE A consumer's right to a new electricity connection on deposit of the estimate is independent of a disputed/undetermined theft-assessment liability, which cannot be a ground to refuse the connection. PROPOSITION 2 · USED IN 1 CASE Reaffirms that an occupier is entitled to a connection and the owner's consent is not an indispensable precondition.	SCJ-210 SCJ-223
36	2 CASES	<i>Durga Hotel Complex v. Reserve Bank of India</i> (2007) 5 SCC 120 : AIR 2007 SC 1467 Referred 2	PROPOSITION USED On the nature and role of an Ombudsman and the scope of interference with its decisions.	SCJ-258 SCJ-260

#	USED IN	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
37	2 CASES	<i>Ferro Alloys Corporation Limited v. A.P. State Electricity Board</i> 1993 Supp (4) SCC 136 Referred 1 · Relied on 1	PROPOSITION 1 · USED IN 1 CASE The true nature of the security transaction is an advance payment of charges for consumption estimated for about three months, to be made good and kept at the stipulated level; the consumer may permit adjustment of the advance. PROPOSITION 2 · USED IN 1 CASE The true nature of a security deposit is an advance payment of charges (a running current account); the relationship between consumer and licensee is that of depositor and depositee, not debtor and creditor.	SCJ-252 SCJ-697
38	2 CASES	<i>J.M.D. Alloys Ltd. v. Bihar State Electricity Board</i> (2003) 5 SCC 226 : AIR 2003 SC 1354 Distinguished 2	PROPOSITION 1 · USED IN 1 CASE Mere acceptance of a police final report by the Magistrate does not amount to a finding by the criminal court that theft of electricity was not committed, where the accused was not summoned, no charge was framed and no evidence recorded. PROPOSITION 2 · USED IN 1 CASE Where the period of unauthorised use cannot be established, the maximum (fallback) period may be taken for computing the assessment.	SCJ-211 SCJ-247
39	2 CASES	<i>Moti Lal Padampat Sugar Mills Ltd. v. State of U.P.</i> AIR 1979 SC 621 Relied on 2	PROPOSITION USED Waiver means the intentional abandonment of a right and must be made with full knowledge of the right; there is no presumption that every person knows the law, so a right cannot be treated as waived without knowledge of it.	SCJ-153 SCJ-162
40	2 CASES	<i>Neeraj Datta v. State (NCT of Delhi)</i> 2022 Online SC 1724 Applied 2	PROPOSITION USED As used here: mere recovery of money does not automatically attract the Prevention of Corruption Act; the ratio was held squarely attracted so that, absent a legal basis for the alleged demand, prima facie no offence under sections 7, 13(1)(B) and 13(2) was made out.	SCJ-542 SCJ-543
41	2 CASES	<i>Popcorn Entertainment v. City Industrial Development Corporation</i> JT 2007 (4) SC 70 Referred 2	PROPOSITION 1 · USED IN 1 CASE A writ may be entertained despite an alternative remedy where the action is without jurisdiction, or in breach of natural justice, or violates fundamental rights. PROPOSITION 2 · USED IN 1 CASE On when a writ petition will be entertained despite the availability of an alternative statutory remedy.	SCJ-040 SCJ-158

#	USED IN	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
42	2 CASES	<i>Punjab State Electricity Board v. Vishwa Calibere Builders Pvt. Ltd.</i> (2010) 4 SCC 539 Followed 2	PROPOSITION USED An Ombudsman commits jurisdictional error, absent statutory authorisation, by directing regularisation of unauthorised electricity use and refund of amounts properly charged for consumption in excess of sanctioned load, even where the licensee's own infrastructural delay contributed to the situation.	SCJ-123 SCJ-147
43	2 CASES	<i>R.N. Gosain v. Yashpal Dhir</i> (1992) 4 SCC 683 Followed 1 · Relied on 1	PROPOSITION 1 · USED IN 1 CASE Law does not permit a person to both approbate and reprobate — a party cannot accept an instrument as valid to obtain an advantage and then treat it as void to avoid a burden. PROPOSITION 2 · USED IN 1 CASE A party cannot approbate and reprobate — it cannot accept the part of a determination favourable to it and reject the unfavourable part.	SCJ-098 SCJ-156
44	2 CASES	<i>Ram Chandra Prasad Sharma & Others v. State of Bihar & Anr.</i> AIR 1967 SC 349 Distinguished 2	PROPOSITION 1 · USED IN 1 CASE Invoked by the revisionist for the proposition that the summoning court had to examine whether the accused's act was dishonest under Section 39 of the Indian Electricity Act, 1910. PROPOSITION 2 · USED IN 1 CASE In a criminal trial for theft of electrical energy under Section 39 of the Indian Electricity Act, 1910, mens rea is a relevant consideration.	SCJ-051 SCJ-637
45	2 CASES	<i>Ruchi Soya Industries Ltd. v. Union of India</i> (2022) 6 SCC 343 Relied on 2	PROPOSITION USED A claim not lodged after the public announcements under ss.13 and 15 IBC does not survive; on approval of the plan all claims stand frozen and any claim not part of the plan cannot survive.	SCJ-157 SCJ-160
46	2 CASES	<i>Shiv Shakti Cooperative Housing Society v. Swaraj Developers</i> (2003) 6 SCC 659 Followed 1 · Relied on 1	PROPOSITION 1 · USED IN 1 CASE An 'appeal' is the removal of a cause from an inferior to a superior court/tribunal for review, requiring the relation of superior and inferior court and the power to review the lower forum's decision. PROPOSITION 2 · USED IN 1 CASE An appeal is a continuation of the original proceedings; the right of appeal is statutory and, once conferred, a vested substantive right, distinct from the inherent right to sue.	SCJ-008 SCJ-138

#	USED IN	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
47	2 CASES	<i>SMS Pharmaceuticals Ltd. v. Neeta Bhalla</i> (2005) 8 SCC 89 Supreme Court (Three-Judge Bench) Followed 1 · Distinguished 1	PROPOSITION 1 · USED IN 1 CASE A Managing Director/Joint Managing Director is presumed responsible for a company's conduct of business under s.141(1) unless shown otherwise; the proviso defence must be established at trial. PROPOSITION 2 · USED IN 1 CASE A complaint under section 141 of the Negotiable Instruments Act must specifically aver that the accused was in charge of and responsible for the conduct of the company's business.	SCJ-132 SCJ-665
48	2 CASES	<i>Sumit Subhashchandra Gangwal v. State of Maharashtra</i> 2023 LiveLaw (SC) 373 Referred 2	PROPOSITION 1 · USED IN 1 CASE Cited at paragraph 5 in the same sentence as Chapter 6 of the Supply Code; this Court did not extract a separate holding. PROPOSITION 2 · USED IN 1 CASE Cited (paragraph 5) in the run of reasons for granting bail; the order does not extract the holding.	SCJ-542 SCJ-543
49	2 CASES	<i>Sundaresh Bhatt, Liquidator of ABG Shipyard v. Central Board of Indirect Taxes and Customs</i> 2022 SCC OnLine SC 1101 Followed 1 · Referred 1	PROPOSITION USED IBC prevails over the Customs Act once a moratorium is imposed; the customs authority retains only a limited jurisdiction to assess duty, not to independently recover via sale/confiscation outside the IBC process.	SCJ-054 SCJ-100
50	2 CASES	<i>Sunil Bharati Mittal v. CBI</i> (2015) 4 SCC 609 Supreme Court (Three-Judge Bench) Referred 1 · Distinguished 1	PROPOSITION 1 · USED IN 1 CASE Corporate criminal liability generally cannot be imputed to individual directors absent active personal role or an express statutory vicarious-liability provision such as s.141 NI Act. PROPOSITION 2 · USED IN 1 CASE There is no vicarious criminal liability unless the statute specifically provides so (para 42 as extracted).	SCJ-132 SCJ-665
51	2 CASES	<i>Swastic Industries v. Maharashtra State Electricity Board</i> (1997) 9 SCC 465 Followed 1 · Relied on 1	PROPOSITION 1 · USED IN 1 CASE There is no limitation for making a demand by way of supplementary bill under s.24 of the 1910 Act; the right to file suit is a separate option, not a precondition; the word 'due' should be given a wide, commercially-honest meaning. PROPOSITION 2 · USED IN 1 CASE Under s.24 of the 1910 Act, the right to recover charges and the right to discontinue supply are two distinct parts.	SCJ-009 SCJ-122

#	USED IN	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
52	2 CASES	<i>Tata Hydro-Electric Power Supply Co. Ltd. v. Union of India</i> (2003) 4 SCC 172 Referred 2	PROPOSITION 1 · USED IN 1 CASE On the interpretation of the statutory/tariff basis for levying electricity charges. PROPOSITION 2 · USED IN 1 CASE Named only as a case relied on in Gautam Motors; no ratio extracted.	SCJ-202 SCJ-552
53	2 CASES	<i>Telangana State Southern Power Distribution Company Ltd. v. ...</i> Followed 1 · Distinguished 1	PROPOSITION 1 · USED IN 1 CASE Electricity dues, where statutory in character under the Electricity Act and the terms/conditions of supply, cannot be waived (s.56, Electricity Act 2003 / pari materia s.24, 1910 Act); where an e-auction notice specifically flags existing electricity dues as a purchaser liability on an 'AS IS WHERE IS, WITHOUT RECOURSE' basis, the purchaser is liable to pay them. PROPOSITION 2 · USED IN 1 CASE Relied on by the respondents for the proposition that electricity dues cannot be extinguished.	SCJ-098 SCJ-157
54	2 CASES	<i>V.C., Banaras Hindu University v. Shrikant</i> (2006) 11 SCC 42 Distinguished 2	PROPOSITION 1 · USED IN 1 CASE A statutory authority's action, though otherwise bona fide, must be fair and reasonable; an order made in ignorance of the prescribed procedure or on extraneous considerations is vitiated in law and subject to judicial review. PROPOSITION 2 · USED IN 1 CASE (Cited among the mala fide-doctrine authorities; held inapplicable on facts.)	SCJ-051 SCJ-061
55	2 CASES	<i>Zandu Pharmaceutical Works Ltd. v. Mohd. Saraful Haq</i> 2005 SCC (Cr.) 283 Followed 2	PROPOSITION USED At the quashing stage only a prima facie case is examined (para 10 as cited); disputed facts go to trial.	SCJ-343 SCJ-539

Cited in a single case (260 authorities — included for completeness)

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
56	<i>A.I. Champdany Industries Ltd. (municipal dues case)</i>	Municipal dues, being unsecured and not within the purview of Crown debt, do not have priority/charge over a company's assets on liquidation sale.	SCJ-098
57	<i>A.I.S.B. Officers Federation & Others v. Union of India & Others</i> JT 1996 (8) SC 550	A petitioner cannot raise mala fide allegations against persons who have not been impleaded as respondents.	SCJ-051

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
58	A.K. Kraipak & Ors. v. Union of India and others AIR 1970 SC 150	Principles of natural justice supplement the statute; an opportunity of hearing is required even where the statute is silent.	SCJ-644
59	A.R. Antulay v. R.S. Nayak and 38 further authorities on statutory interpretation, precedent (sub silentio/per incuriam), vires of delegated legislation, and harmonious construction (incl. Kunj Behari Lal Butail v. State of H.P.; Global Energy Ltd. v. CERC; State of T.N. v. P. Krishnamurthy; J.K. Cotton Spinning & Weaving Mills v. State of U.P.; PTC India v. CERC) (1988) 2 SCC 602 and others (omnibus list, paras 36 & 42)	General canons of statutory interpretation and administrative law (reading a statute as a whole vs. section-by-section; ultra vires/consistency of subordinate legislation with the parent Act; precedential weight of a decision not engaging a specific provision) cited in support of the rival vires arguments.	SCJ-043
60	ABL International Ltd.	A writ petition against the State/instrumentality arising from a contractual obligation is maintainable notwithstanding disputed questions of fact, including for consequential monetary relief, unless action is arbitrary/unreasonable violating Article 14.	SCJ-112
61	Additional District Magistrate (Rev.), Delhi Admn. v. Siri Ram (2000) 5 SCC 451	Conferment of rule-making power does not enable the delegate to make rules travelling beyond, inconsistent with, or repugnant to the enabling Act.	SCJ-147
62	Aleque Padamsee & Others v. Union of India & Others (2007) 6 SCC 171	Where the police fail to act on information about a cognizable offence, the remedy is to file a complaint before the Magistrate under s.190/200 Cr.P.C., not a writ petition seeking a direction to register an FIR.	SCJ-118
63	Aligarh Muslim University v. Mansoor Ali Khan AIR 2000 SC 2783	Following S.L. Kapoor v. Jagmohan, where on admitted/indisputable facts only one conclusion is possible, breach of natural justice need not vitiate the order (a narrow exception).	SCJ-032
64	Andhra Steel Corporation Ltd. v. A.P. State Electricity Board (1991) 3 SCC 263	On minimum-guarantee charge (under the 1910 Act).	SCJ-035
65	Arnesh Kumar v. State of Bihar (2014) 8 SCC 273	Police officers are not to arrest accused unnecessarily, nor Magistrates to authorise detention casually, for offences punishable with imprisonment of seven years or less (with or without fine); notice of appearance under Section 41-A Cr.P.C. is to be served, and arrest requires satisfaction of the Section 41 parameters with recorded reasons.	SCJ-340
66	Assistant Engineer (D1), Ajmer Vidyut Vitran Nigam Ltd. v. Rahamatullah Khan @ Rahamjulla Civil Appeal No. 1672 of 2020 (arising out of SLP (C) No. 5190 of 2019)	Under Section 56(2) a licensee is not precluded from raising a supplementary demand after two years, the limitation running from the date the mistake/escaped billing was discovered.	SCJ-263
67	Atam Prakash v. State of Haryana 1986 (2) SCC 249	Applied prospective overruling to a statute declared ultra vires.	SCJ-128
68	Authorised Officer (Land Reforms) v. M.M. Krishnamurthy Chetty (1998) 9 SCC 138	Even orders which may not be strictly legal become final and binding between the parties if they are not challenged before the superior courts; a dispute that has attained finality cannot be reopened.	SCJ-552

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
69	<i>Bachhaj Nahar v. Nilima Mandal</i> (2008) 17 SCC 491	Cited by the petitioner; no ratio extracted.	SCJ-552
70	<i>Badri Kedar Paper (P) Ltd. v. U.P. Electricity Regulatory Commission</i> (2009) 3 SCC 754	On appeal, the Supreme Court took a different view of the licensee/tariff and surcharge questions decided by the High Court in this and connected matters.	SCJ-155
71	<i>Balram Prasad v. Kunal Saha & Ors.</i>	The court is sceptical of a strait-jacket multiplier method and may deviate from it to avoid over- or under-compensation, determining just, fair and reasonable compensation on the facts.	SCJ-025
72	<i>Bharathidasan University & Anr. v. All-India Council for Technical Education & Ors.</i> (2001) 8 SCC 676	(Same proposition as Chandra Kumar Shah — regulation-making power is not a source of independent legislative authority.)	SCJ-053
73	<i>Bhavnagar University v. Palitana Sugar Mills (P) Ltd.</i> (2003) 2 SCC 111 : AIR 2003 SC 511	A little difference in facts or additional facts may make a lot of difference in the precedential value of a decision.	SCJ-247
74	<i>Bihar State Electricity Board v. M/s Green Rubber Industries</i> (1990) 1 SCC 731	On minimum-guarantee charge (under the Electricity Act, 1910).	SCJ-035
75	<i>Bihar State Electricity Board v. Parmeshwar Kumar Agarwala</i> (1996) 4 SCC 686	The Supply Code / conditions of supply have statutory flavour and are to be strictly followed by the parties.	SCJ-032
76	<i>Binani Zinc Ltd. v. Kerala State Electricity Board & Ors.</i> 2009 (11) SCC 244	The regulatory commission has not been empowered to frame tariff with retrospective effect covering a period before its own constitution/determination; the rule of law postulates that all laws are prospective, absent an express provision or necessary intendment to the contrary.	SCJ-066
77	<i>Board of Trustees, Port of Mumbai v. Indian Oil Corporation</i> 1998 (2) SCR 774	Port dues under the Major Port Trust Act, 1963 override all other claims, including secured creditors, in liquidation.	SCJ-100
78	<i>Bombay Electricity Supply and Transport Undertaking v. Laffans (India) (P) Ltd.</i> (2005) 4 SCC 327	Section 26(6) is attracted only when the meter is not correct; it does not apply to fraud/trick/tampering, and a licensee who removes the meter without a reference loses the material evidence and cannot revise the demand.	SCJ-262
79	<i>Brahm Dutt v. Union of India</i>	Where a body performs both advisory/regulatory and adjudicatory functions, it may be appropriate (though a matter for legislative wisdom) to create two separate bodies.	SCJ-130
80	<i>BSES Ltd. v. Tata Power Co. Ltd.</i> (2004) 1 SCC 195	An interim arrangement, based on a prima facie view without full examination, would be subject to final adjustment with interest where a matter (there, standby charges) was pending Commission determination and remained unpaid.	SCJ-073
81	<i>Calcutta Discount Co. Ltd v. ITO, Companies Distt.</i>	Where an executive authority acts without jurisdiction and thereby subjects a person to lengthy proceedings and harassment, the High Court may issue prohibition or certiorari.	SCJ-706

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
82	<i>Calcutta Discount Co. Ltd. v. Income Tax Officer, Companies Distt. I</i> AIR 1961 SC 372	Where an executive authority acts without jurisdiction and thereby subjects a person to lengthy proceedings and harassment, the High Court may issue prohibition/certiorari notwithstanding the executive character of the act.	SCJ-153
83	<i>Canara Bank v. G.S. Jayarama</i> 2022 LiveLaw (SC) 499	Conciliation proceedings under Section 22-C of the Legal Services Authorities Act, 1987 are mandatory. Section 22-C(8) comes into effect only once an agreement under Section 22-C(7) has failed; a Permanent Lok Adalat cannot skip conciliation and adjudicate on merits, including where a party is absent (paras 26–27 as quoted).	SCJ-319
84	<i>Canara Bank v. P.R.N. Upadhyaya & Others</i> (1998) 6 SCC 526	A Banking Ombudsman (analogous statutory scheme) is bound by governing circulars/directions and cannot issue directions in ignorance of them.	SCJ-123
85	<i>Carborundum Universal Ltd. v. CBDT</i> 1989 Supp (2) SCC 462	Where a statutory provision does not exclude natural justice, an opportunity of being heard is to be assumed, especially in quasi-judicial proceedings.	SCJ-032
86	<i>Cauvery Water Disputes Tribunal, In re</i> 1993 Supp (1) SCC 96(2) : AIR 1992 SC 22	A legislature may remove the basis of a court's decision but cannot direct the instrumentalities of the State to disobey or disregard a court's decision.	SCJ-255
87	<i>Central GST Delhi-III v. Delhi International Airport Ltd.</i>	User Development Fee (UDF) is in the nature of a tax or cess collected to fund future projects, not consideration for a service, and is therefore not exigible to service tax.	SCJ-002
88	<i>Chairman, SBI v. M.J. James</i>	The court must consciously examine whether a party has sat over a matter and woken up to gain advantage; delay and laches are balanced accordingly.	SCJ-001
89	<i>Chandavarkar Sita Ratna Rao v. Ashalata S. Guram</i> (1986) 4 SCC 447	A non obstante clause gives the enacting part overriding effect over the provisions mentioned in it.	SCJ-009
90	<i>Chandigarh Administration v. Jagjit Singh</i> 1995 (1) SCC 745; AIR 1995 SC 705	The mere fact an authority passed a particular (possibly illegal) order for another similarly-situated person cannot found a discrimination-based claim to have that illegality repeated; Article 14 does not envisage negative equality.	SCJ-123
91	<i>Chandra Kishore Jha v. Mahabir Prasad</i> JT 1999 (7) SC 256	Where a statute provides for a thing to be done in a particular manner, it must be done in that manner and no other.	SCJ-170
92	<i>Chandroji Rao v. CIT</i> 1970 (2) SCC 23	A marginal heading cannot control the interpretation of a statutory provision.	SCJ-059
93	<i>CIT v. Dhadi Sahu</i> 1994 Supp (1) SCC 257	A law changing the forum does not affect pending actions unless a contrary intention is clearly shown; the forum of appeal is a vested right, not pure procedure.	SCJ-008
94	<i>CIT v. Monnet Ispat and Energy Ltd.</i> (2018) 18 SCC 786	Follows Innoventive Industries on the overriding effect of IBC s.238.	SCJ-054
95	<i>CIT, Bangalore v. R. Sharadamma</i> (1996) 8 SCC 388	Where an authority is validly seized of a matter on a reference, it does not lose jurisdiction on a later amendment; change of forum is not mere procedure but a vested right.	SCJ-008

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
96	<i>City Corporation Limited v. Maharashtra Electricity Regulatory Commission and Anr.</i> 2024 SCC OnLine APTEL 103	A distribution franchisee is the agent of the distribution licensee (its principal); the licensee alone is accountable to consumers and to the ERC's regulatory jurisdiction; an ERC lacks jurisdiction to adjudicate a petition filed by a franchisee, or to apply a licensee's tariff order to the franchisee directly.	SCJ-136
97	<i>CoC of Essar Steel India Ltd. v. Satish Kumar Gupta</i>	The successful resolution applicant takes over the corporate debtor on a clean slate, free from past liabilities except those specifically incorporated in the resolution plan.	SCJ-157
98	<i>Collector, Distt. Gwalior & Anr. v. Cine Exhibitors P. Ltd. & Anr.</i> AIR 2012 SC 1239	(Follows and applies S. Sethuraman on jurisdiction not being conferrable by consent.)	SCJ-049
99	<i>Commissioner of Central Excise, Bhavnagar v. Saurashtra Chemicals Ltd.</i> (2007) 10 SCC 352	The expression 'subject to' denotes a limitation — 'governed or affected by', 'provided that' — citing Ashok Leyland Ltd. v. State of T.N. and Black's Law Dictionary.	SCJ-053
100	<i>Committee of Creditors of Essar Steel India Ltd. v. Satish Kumar Gupta & Ors.</i> 2019 (16) SCR 275	NCLT possesses no discretionary jurisdiction over initiation of liquidation proceedings once the statutory conditions under ss.30, 31(2), 60(5)(c) IBC are met.	SCJ-100
101	<i>D.P. Kesari v. Board of Directors of Allahabad Agricultural Institute</i> (2009) 12 SCC 272	Cited by the petitioner; no ratio extracted.	SCJ-552
102	<i>Dakshin Haryana Bijli Vitran Nigam Ltd. v. Excel Buildcon Pvt. Ltd.</i> (2008) 10 SCC 720	Followed Paramount Polymers on recovery of arrears from a transferee where the conditions of supply so provide.	SCJ-031
103	<i>Dakshin Haryana Bijli Vitran Nigam Ltd. v. M/s Paramount Polymers Pvt. Ltd.</i> AIR 2007 SC 2	Where the Terms and Conditions of Supply validly condition a fresh/reconnection on clearing a previous consumer's arrears on the premises, a purchaser cannot invoke Isha Marbles to obtain a fresh connection without clearing those arrears; but the arrears remain tied to the premises/reconnection process, with any transferee payment adjusted against (and refundable if later recovered from) the original defaulter.	SCJ-063
104	<i>Dehri Rohtas Light Railway Co. v. District Board, Bhojpur</i>	Delay/laches: whether a party has chosen to sit over the matter to gain advantage.	SCJ-001
105	<i>Dilip (dead) & Ors. v. Satish & Ors.</i> Criminal Appeal No. 810 of 2022 (arising out of SLP (Crl.) No. 8917 of 2019), decided 13 May 2022	Cited by the petitioner in support of a tenant/occupier's entitlement to essential services.	SCJ-272
106	<i>Doburg Lager Breweries Pvt. Ltd. v. Dhariwal Bottle Trading Co.</i> (1986) 2 SCC 382	A Relief Undertaking Act sub-serves the public interest and prevention of unemployment, so its provisions are liberally interpreted.	SCJ-038
107	<i>Doypack Systems Pvt. Ltd. v. Union of India</i> (1988) 2 SCC 299	Principles of statutory interpretation, including reading provisions in their context to give effect to legislative intent.	SCJ-158

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
108	<i>Dr. D.M. Surti v. State of Gujarat</i> AIR 1969 SC 63	A professional activity, carried on by an individual through personal skill and intelligence, is fundamentally distinct from a commercial activity; associated words in a statutory list take their colour from one another (noscitur a sociis).	SCJ-133
109	<i>Dr. Mahachandra Prasad Singh v. Chairman, Bihar Legislative Council & Ors.</i> (2004) 8 SCC 747	A delegate's power under delegated legislation is strictly ancillary; it does not enable extension of the enactment's scope, and cannot be used to widen the Act's purposes or depart from its ends.	SCJ-147
110	<i>Durga Enterprises (P) Ltd. v. Principal Secretary, Govt. of U.P.</i> (2004) 13 SCC 665	Where the High Court has entertained a writ petition in which pleadings are complete, it ought to decide the case on merits rather than relegate the parties to the alternative remedy.	SCJ-164
111	<i>Duro Felguera, S.A. v. Gangavaram Port Ltd.</i> (2017) 9 SCC 729	Section 11(6A) examination of the existence of an arbitration agreement is to be understood in a narrow sense (paras 48 and 59).	SCJ-274
112	<i>East Coast Railway & Anr. v. Mahadev Appa Rao & Ors.</i> 2010 (7) SCC 678	Whether an enquiry/verification was necessary before an adverse order depends on the facts; the authority must be alive to the material on which it purports to decide, not act mechanically or under impulse.	SCJ-061
113	<i>Electronics Corporation of India Ltd. v. Secretary, Revenue Department, Govt of A.P.</i> (1999) 4 SCC 458 : AIR 1999 SC 1734	On the tests for treating a Government company/corporation as an instrumentality or 'State'.	SCJ-158
114	<i>Energy Watchdog v. Central Electricity Regulatory Commission</i> (2017) 14 SCC 80	Whenever generation or supply of electricity is inter-State, the Central Commission is the appropriate regulator; whenever intra-State, the State Commission is — jurisdiction turns on whether generation and sale occurs within one State or more than one State.	SCJ-110
115	<i>F.N. Roy v. Collector of Customs, Calcutta</i> AIR 1957 SC 648	There is no rule of natural justice that at every stage a person is entitled to a personal hearing.	SCJ-032
116	<i>Federation of Railway Officers Association v. Union of India</i> AIR 2003 SC 1344	Allegations of mala fide cannot be vaguely made and must be specific; the official said to be involved must be made a party to meet the allegations.	SCJ-051
117	<i>Garikapati Veeraya v. N. Subbiah Choudhry</i> AIR 1957 SC 540	Leading five-principle statement: the right of appeal is a vested substantive right governed by the law at the institution of the suit/proceeding, preserved through all appellate stages, and can be taken away only by express enactment or necessary intendment.	SCJ-008
118	<i>General Officer Commanding-in-Chief & Anr. v. Dr. Subhash Chandra Yadav & Anr.</i> (1988) 2 SCC 351	For a rule to have statutory effect, it must (1) conform to the provisions of the statute under which it is framed, and (2) come within the scope of the rule-making power; failing either, the rule is void.	SCJ-147
119	<i>GKN Driveshafts (India) Ltd. v. Income Tax Officer & Ors.</i> (2002) 125 Taxman 963 (SC)	A challenge to a notice for (provisional) assessment is premature; the assessee should file its reply / objection rather than rush to the writ court.	SCJ-1060
120	<i>Global Energy Limited & Anr. v. Central Electricity Regulatory Commission</i> (2009) 15 SCC 570	A general 'for carrying out the purpose of the Act' rule-making delegation cannot be exercised to bring into existence substantive rights, obligations or disabilities not contemplated by the parent Act.	SCJ-147

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
121	<i>Global Feeds Feedback Energy Distribution Company Private Ltd. v. Government of Odisha</i> 2019 SCC OnLine Ori 205	The contractual terms between a distribution licensee and its franchisee are privy to those parties, absent a specific statutory provision regulating that relationship.	SCJ-136
122	<i>GOQII Technologies Pvt. Ltd. v. Sokrati Technologies Pvt. Ltd.</i> (2025) 2 SCC 192	Reiterates the Mayavati Trading / Duro Felguera position on the confined scope of s.11.	SCJ-274
123	<i>Grasim Industries Ltd. v. Collector of Customs</i> 2002 (4) SCC 297	Statutory provisions must be interpreted in context, not in isolation; a construction leaving part of the statute without effect is normally rejected.	SCJ-113
124	<i>Gujarat Urja Vikas Nigam Ltd. v. Tarini Infrastructure Ltd.</i> (2016) 8 SCC 743	Tariff incorporated in a power purchase agreement is not a pure act of volition alterable only by mutual consent.	SCJ-010
125	<i>Guntaiah & Others v. Hambamma & Others</i> (2005) 6 SCC 228	Titles/marginal notes have the effect of only marginal notes and are not a legitimate aid to construction of a section or rule.	SCJ-059
126	<i>Gunwant Kaur v. Municipal Committee, Bhatinda</i> (1969) 3 SCC 769	In a petition under Article 226 the High Court has jurisdiction to try issues both of fact and law.	SCJ-040
127	<i>Harbanslal Sahnia & Another</i>	Reiterates the Whirlpool Corporation exceptions to the alternative-remedy bar.	SCJ-112
128	<i>Haridwar Singh v. Bagun Sumbrui & Ors.</i> (1973) 3 SCC 889	Even a revenue-enhancing decision requires mandatory Finance Department consultation under Rules of Business if taken without the Chief Minister's involvement.	SCJ-134
129	<i>Himalayan Coop. Group Housing Society v. Balwan Singh</i> (2015) 7 SCC 373	A counsel's admission binds only if unequivocal and authorised; the client is not bound by an unauthorised concession, nor by statements on matters of law or legal conclusions; the court should ascertain authority before accepting a concession that surrenders substantial rights.	SCJ-635
130	<i>Hindustan Zinc Ltd. v. RERC</i> (2015) 12 SCC 611	Subordinate legislation, including regulations framed under statutory authority, carries a presumption of constitutionality; the burden lies on the challenger to establish invalidity.	SCJ-110
131	<i>HMT Ltd. v. Mudappa</i> JT 2007 (3) SC 112	Malice in law doctrine applied to administrative/service action.	SCJ-126
132	<i>HMT Watches Ltd. v. M.A. Habida</i> (2015) 11 SCC 776	Whether a cheque was given as security or towards an outstanding liability is a factual question determinable only at trial, not in s.482 Cr.P.C. proceedings.	SCJ-132
133	<i>Hoosein Kasam Dada (India) Ltd. v. State of M.P.</i> AIR 1953 SC 221	Unless the new Act expressly or by necessary implication is retrospective, the right of appeal crystallises on institution and a new deposit condition cannot be imposed.	SCJ-008
134	<i>Hyderabad Vanaspathi Ltd. v. A.P. State Electricity Board</i> (1998) 4 SCC 470	Electricity dues under the terms and conditions of supply partake of the character of statutory dues; the agreements with individual consumers only bring the statutory terms to their notice and do not render the terms purely contractual.	SCJ-271

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
135	Hyderabad Vanaspati Ltd. v. A.P. State Electricity Board (1998) 2 SCR 620	Terms and conditions of supply notified by an Electricity Board under Section 49 of the Electricity (Supply) Act are statutory, not contractual; a condition for recovery of dues from a transferee is not ex facie unauthorised or unreasonable.	SCJ-031
136	I.C. Golak Nath and others v. State of Punjab 1967 AIR 1643	Introduced the doctrine of prospective overruling into Indian constitutional jurisprudence, distinguishing the Blackstonian (purely retrospective) theory from Cardozo's prospective-overruling approach.	SCJ-128
137	In Re: Expeditious Trial of Cases under Section 138 of the N.I. Act 1881 Suo Motu Writ Petition (Crl) No. 2 of 2020, decided 16.4.2021	s.145 NI Act dispenses with mandatory oral examination of witnesses on oath for the s.202 Cr.P.C. inquiry in s.138 complaints; complainant's evidence may be by affidavit.	SCJ-132
138	In re: Natural Resources Allocation, Special Reference No. 1 of 2012 (2012) 10 SCC 1	Clarifies that the binding 'law declared' under Article 141 is the ratio decidendi culled from the judgment as a whole, not every observation.	SCJ-130
139	Indian Aluminium Co. v. Kerala State Electricity Board (1975) 2 SCC 414	A stipulation entered into by a public authority in exercise of a statutory power, even if it fetters future exercise of the same or another statutory power, is valid and binding on the principle of harmonious construction — but this applies only to express stipulations in exercise of statutory power, not silence in a private-contract-style term.	SCJ-134
140	Indian Aluminium Co. v. State of Kerala (1996) 7 SCC 637 : AIR 1996 SC 1431	The legislature cannot by mere declaration overrule a judicial decision, but may render it ineffective by validly altering the law fundamentally and retrospectively.	SCJ-255
141	Indian Overseas Bank v. RCM Infrastructure Ltd. AIR Online 2022 SC 736	Once CIRP is initiated and a moratorium is ordered, SARFAESI Act proceedings against the Corporate Debtor cannot continue; IBC, being a later Parliamentary code, overrides inconsistent provisions of other laws under s.238.	SCJ-090
142	Indira Sohanlal v. Custodian of Evacuee Property, Delhi AIR 1956 SC 77	Observed that the right of appeal in a pending action may be a substantive vesting right, but left the question open.	SCJ-008
143	Indus Airways Private Ltd. v. Magnum Aviation Private Ltd. (2014) 12 SCC 539	A cheque issued as advance payment for a purchase order later cancelled (with no goods ever supplied) does not secure a legally enforceable debt or liability; s.138 requires a subsisting debt/liability on the date of drawing.	SCJ-132
144	J.N. Banavalikar v. Municipal Corporation of Delhi AIR 1996 SC 326	In the absence of impleadment of the person who allegedly passed a mala fide order, a contention of malice in fact should not be countenanced.	SCJ-051
145	Jharkhand State Electricity Board v. Laxmi Business and Cement Company Pvt. Ltd. (2014) 5 SCC 236	On minimum-guarantee charge.	SCJ-035
146	K. Kishan v. Vijay Nirman Company Private Limited (2018) 17 SCC 662	Upholds the primacy of IBC s.238 over the Arbitration and Conciliation Act, 1996.	SCJ-054
147	K. Shashidhar v. Indian Overseas Bank 2019 (3) SCR 845	Once the conditions of s.33 IBC are met, the Adjudicating Authority must initiate liquidation as a matter of course, with no discretion to evaluate the CoC's commercial decision.	SCJ-100

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
148	<i>K.K. Bhalla v. State of U.P.</i>	Cited in the string of malice-in-law authorities at para 42.	SCJ-126
149	<i>K.S. Rashid & Son v. Income Tax Investigation Commission</i>	Where an alternative remedy exists it is ordinarily a sound exercise of discretion to refuse a writ, unless there are good grounds to the contrary.	SCJ-706
150	<i>K.V. Rajalakshmiah Setty v. State of Mysore</i> AIR 1961 SC 993	A mere representation is not an adequate explanation for delay in approaching the court.	SCJ-068
151	<i>Kanpur Electricity Supply Co. Ltd. v. LML Ltd.</i> (2010) 6 SCC 165	Affirmed this judgment: under Clause 4.41 read with the unamended Clause 4.49 the load reduction stood approved on the licensee's decision of 19.4.2006, and the consumer was entitled to have its load treated as reduced.	SCJ-246
152	<i>Karnal Improvement Trust v. Prakashwanti</i> (1995) 5 SCC 159	Acquiescence does not confer jurisdiction, and an erroneous interpretation should not be perpetuated defeating legislative intent.	SCJ-049
153	<i>Kavita Trehan & Anr. v. Balsara Hygiene Products Ltd.</i> (1994) 5 SCC 380	The power to make restitution is inherent in every court, applying even outside Section 144 CPC.	SCJ-073
154	<i>Kihoto Hollohan v. Zachillhu</i> 1992 Supp (2) SCC 651	A body discharging judicial functions of far-reaching effect must have the essential 'trappings of the Court', including presence of judicial members.	SCJ-130
155	<i>Kiran Singh v. Chaman Paswan</i> AIR 1954 SC 340	A defect of jurisdiction strikes at the very authority of the Court to pass any decree and cannot be cured even by consent of parties.	SCJ-049
156	<i>Kunj Behari Lal Butail & Ors. v. State of H.P. & Ors.</i> (2000) 3 SCC 40	Where a general rule-making power is conferred, the object of the enactment must be found and the rules tested against whether they fall within its scope; where the delegation is not general, the rules must be protected by the limits prescribed by the parent Act.	SCJ-147
157	<i>Kusheshwar Prasad Singh v. State of Bihar</i>	An authority cannot take undue advantage of its own default in discharging a statutory duty; a wrongdoer ought not to profit from his own wrong.	SCJ-001
158	<i>Kusumam Hotels (P) Ltd. v. Kerala State Electricity Board & Others</i> Civil Appeal No. 101 of 2007, decided 16.5.2008	Section 56(2) of the Electricity Act, 2003 applies only after the Act came into force; the bar of limitation does not apply to liabilities of a consumer incurred prior to the Act's commencement, given s.6 of the General Clauses Act preserving accrued liabilities on repeal.	SCJ-122
159	<i>Lalit Chaturvedi v. State of U.P.</i> 2024 SCC OnLine SC 171	There is a growing tendency to drag civil disputes into criminal litigation, which the Court must curb.	SCJ-342
160	<i>Lalit Kumar Jain v. Union of India & Ors.</i> (2021) 9 SCC 321	Approval of a resolution plan under s.31 IBC does not ipso facto discharge a personal guarantor of a Corporate Debtor of liability under the contract of guarantee; release of the principal borrower by an involuntary process (insolvency/liquidation) does not absolve the guarantor, whose liability arises from an independent contract.	SCJ-090
161	<i>Laxmi Pat Surana v. Union of India & Anr.</i> (2021) 8 SCC 481	IBC is a complete, beneficiary code intended to rehabilitate the Corporate Debtor, not merely a money-recovery statute; a Corporate Debtor's guarantor liability is coextensive and coterminous with the principal borrower's obligation under s.128 of the Contract Act.	SCJ-090

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
162	LIC of India v. Suresh Kumar (2011) 7 SCC 491	Proposition not recorded.	SCJ-1046
163	M. Rathinaswami & Ors. v. State of Tamil Nadu & Ors. (2009) 5 SCC 625	To save a statutory provision from unconstitutionality, a restricted or extended interpretation may sometimes be required.	SCJ-094
164	M.A.A. Annamalai v. State of Karnataka (2010) 8 SCC 524	A person who had ceased to be a director before the alleged offences, and against whom the FIR contained no allegation, could not be compelled to face trial (para 37 as extracted).	SCJ-665
165	M.K. Shah Engineers & Contractors v. State of M.P.	No one may take advantage of one's own wrong; a party whose conduct disables a preceding procedural step is deemed to have waived it.	SCJ-001
166	M.P. Electricity Board and Others v. Shiv Narayan and Another (2005) 7 SCC 283	An advocate's office cannot be charged additional (commercial) tariff, as the legal profession is not a commercial activity; 'non-domestic' and 'commercial' are not interchangeable terms.	SCJ-133
167	M.P. State Electricity Board v. Gras Industries Ltd. AIR 2008 SC 433	Cited on the distinction between security/additional security and dues/arrears.	SCJ-252
168	M/s Indian Maize and Chemical Ltd. v. State of Uttar Pradesh 1997 (9) SCC 462	Relied on by the Corporation for the contention that the demand-charge relief was not in consonance with the Electricity Act / with the directions of the Apex Court and that a licensee cannot be compelled to grant concessions contrary to law.	SCJ-1061
169	M/S Lipton India Ltd. & Others v. Union of India & Others JT 1994 (6) SC 71	Though no limitation period is prescribed for Article 226 petitions, they should ordinarily be filed within a reasonable time.	SCJ-068
170	M/S Mayavati Trading Pvt. Ltd. v. Pradyut Deb Burman Civil Appeal No. 7023 of 2019, decided 5 September 2019	After the 2015 Amendment, s.11(6A) confines the referral court to a narrow examination of the existence of an arbitration agreement (Duro Felguera paras 48 and 59); the pre-2015 enquiry into accord and satisfaction stands legislatively overruled.	SCJ-274
171	M/s Neeharika Infrastructure Pvt. Ltd. v. State of Maharashtra AIR 2021 SC 1918	Only those cases in which no prima facie case is made out can be considered on an application under section 482 Cr.P.C.	SCJ-539
172	M/s Prem Cottex v. Uttar Haryana Bijli Vitran Nigam Ltd. (2021) 20 SCC 200	Rahamatullah Khan was distinguished on facts; the licensee was still prevented from disconnecting and left to other remedies.	SCJ-283
173	M/s Womb Laboratories Pvt. Ltd. v. Vijay Ahuja Criminal Appeal Nos. 1382-1383 of 2019, decided 11.9.2019	That cheques were given by way of security, and whether they secured any debt or liability, are matters of defence to be proved at trial, not grounds to quash at the threshold.	SCJ-132
174	Madhya Pradesh Electricity Board v. Union of India & Ors. 2006 (9) SCALE 194	The Electricity (Supply) Act, 1948 provides for the constitution and composition of State Electricity Boards, each State being enjoined to constitute one.	SCJ-091
175	Madhya Pradesh State Cooperative Dairy Federation Ltd. v. Rajnesh Kumar Jamindar (2009) 15 SCC 221	(Cited among the mala fide-doctrine authorities; held inapplicable on facts.)	SCJ-051

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
176	Madras Bar Association v. Union of India & Anr. (2014) 10 SCC 1	Held the National Tax Tribunal Act unconstitutional on grounds including inadequate provision for judicial members; separation of powers/judicial review are part of the basic structure.	SCJ-130
177	Mahabir Kishore v. State of M.P. (1989) 4 SCC 1	Under s.17(1)(c) of the Limitation Act, 1963, in a case of relief on the ground of mistake, limitation does not begin until the plaintiff has discovered, or could with reasonable diligence have discovered, the mistake.	SCJ-009
178	Mahanta Moti Das v. S.P. Sahid	Where a question involves investigation of complicated facts and recording of evidence, the High Court may refuse to decide it in a writ proceeding.	SCJ-040
179	Maharashtra State Electricity Distribution Co. Ltd. v. Datar Switchgear Ltd. (2010) 10 SCC 479	One cannot presume that a chairman of a company is responsible for all acts committed by or on behalf of the company.	SCJ-665
180	Maharashtra State Electricity Regulatory Commission v. Reliance Energy Ltd. (2007) 8 SCC 381 : AIR 2008 SC 976	On the CGRF/Ombudsman redressal scheme, directing wide advertisement of the provisions for redressal through the forum and the Electricity Ombudsman.	SCJ-260
181	Manager, Government Branch Press v. D.B. Belliappa	Cited in the string of malice-in-law authorities at para 42.	SCJ-126
182	Managing Director (MIG), Hindustan Aeronautics Ltd. v. Ajit Prasad Tarway AIR 1973 SC 76	The High Court's supervisory jurisdiction under Article 227 is not to be exercised to interfere with concurrent findings/orders of the courts below as if in appeal.	SCJ-018
183	Managing Director, ECIL v. B. Karunakar (1993) 4 SCC 727	Explains and limits the prospective application of Mohd. Ramzan Khan; law was 'unsettled' only until the date of that decision.	SCJ-128
184	Manik B. v. Kadapala Sreyes Reddy 2023 Live Law (SC) 642	Cited in the same catena on the limited scope of inherent-power quashing at the pre-trial stage (this Court does not restate a separate holding).	SCJ-343
185	Manujendra Dutt v. Purnedu Prosad Roy Chowdhury AIR 1967 SC 1419	Deletion of a provision (there, s.29 of the Calcutta Thika Tenancy Act) does not divest the forum of jurisdiction over proceedings validly transferred and pending before it, absent a contrary provision.	SCJ-008
186	Maria Cristina De Souza Sodder v. Amria Zurana Pereira Pinto (1979) 1 SCC 92	The right of appeal is a substantive right that vests when the lis commences and is not affected by a repeal unless the repealing enactment expressly or by necessary implication takes it away.	SCJ-008
187	Md. Asfak Alam v. State of Jharkhand Criminal Appeal No. (S) 2207 of 2023, decided 31.07.2023	Reiterates the Arnesh Kumar guidelines on arrest for offences punishable with seven years or less.	SCJ-340
188	Member, Board of Revenue v. Anthony Paul Benthall (1955) 2 SCR 842	When a statute uses two different expressions in consecutive provisions, they cannot be construed as having the same meaning.	SCJ-100
189	Midnapore People's Co-op. Bank v. Chunilal Nanda (2006) 5 SCC 399	Where a contempt court issues a direction in the nature of the exercise of writ-court powers, even beyond the scope of the writ court's order, a special appeal against that direction is maintainable.	SCJ-222

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
190	<i>Mineral Area Development Authority v. Steel Authority of India Ltd.</i> (2024) 10 SCC 1	The State acts as trustee for minerals held for public benefit and retains its constitutional regulatory and taxation powers over mineral rights notwithstanding inability to alter mining-lease clauses directly.	SCJ-134
191	<i>MRF Limited v. Manohar Parrikar</i> (2010) 11 SCC 374	Rules of Business framed under Article 166(3) are mandatory; a decision by an individual minister without the Chief Minister's knowledge, on a matter affecting State finances, is a nullity.	SCJ-134
192	<i>Mrutunjay Pani v. Narmada Bala Sasmal</i> AIR 1961 SC 1353	Commodum ex injuria sua nemo habere debet — no one can be allowed to benefit from his own wrongful act.	SCJ-001
193	<i>MSEDCL v. JSW Steel Ltd.</i>	Captive consumers bear no additional surcharge under s.42(4) even when not drawing from the licensee; such a levy would be discriminatory.	SCJ-001
194	<i>Mukesh Kumar Agrawal v. State of U.P.</i> JT 2009 (13) SC 643	Elaborates the malice-in-law doctrine as applicable to administrative/statutory action taken without just cause.	SCJ-126
195	<i>Municipal Commissioner of Dum Dum Municipality v. Indian Tourism Development Corporation</i> 1995 (5) SCC 251	Statutory corporations (including Electricity Boards under the Electricity Supply Act, 1948) are distinct juristic entities with their own funds/properties, capable of contracting and being creditors/debtors independent of the Government even where government-owned.	SCJ-100
196	<i>N. Raghvender v. State of Andhra Pradesh</i> (2021) 18 SCC 70	Section 420 IPC requires dishonest intention at the inception of the transaction. Mere breach of contract does not give rise to a Section 420 prosecution unless fraudulent or dishonest intention is shown right at the beginning; mens rea must be established (para 52 as quoted).	SCJ-342
197	<i>NESCO v. Raghunath Paper Mills (P) Ltd.</i> (2012) 13 SCC 479	An auction purchaser buying an official liquidator's sale 'as is where is, whatever there is' is not liable for the past owner's electricity arrears, and a request for a fresh connection cannot be rejected on that ground.	SCJ-054
198	<i>New Bihar Biri Leaves Co. v. State of Bihar</i> (1981) 1 SCC 537	On the construction of commercial agreements and the ascertainment of price where the contract leaves it to be fixed.	SCJ-156
199	<i>New Delhi Municipal Council v. Pan Singh & Others</i> JT 2007 (4) SC 253	A writ petition filed after a long time should not be entertained even if petitioners are similarly situated to those who obtained relief; delay and laches are relevant to exercise of equitable jurisdiction.	SCJ-068
200	<i>New Okhla Industrial Development Authority v. Kendriya Karmachari Sahkari Grih Nirman Samiti</i> 2006 (II) RJ 1365	The High Court has jurisdiction under Article 226 to try issues of fact and law, but where the petition raises complex questions of fact requiring evidence, it should ordinarily decline and relegate the party to the normal remedy.	SCJ-040
201	<i>Ningamma & Anr. v. United India Insurance Co. Ltd.</i>	A claimant is entitled to determination of just and reasonable compensation under different heads.	SCJ-025
202	<i>Nirmala Anand v. Advent Corporation (Pvt.) Ltd.</i>	A party cannot take advantage of its own wrong; to permit it would confer an unfair advantage.	SCJ-001
203	<i>Nizam's Institute of Medical Sciences v. Prasanth S. Dhananka & Ors.</i>	In assessing compensation for grievous personal injury, the court strikes a balance and awards just compensation under different heads, taking guidance from Motor Vehicles Act principles.	SCJ-025

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
204	<i>Orissa State Electricity Board v. Indian Aluminium Co. Ltd.</i> (1975)	On the power to fix and revise electricity tariff/charges and the scope of a supplier's entitlement in such arrangements.	SCJ-156
205	<i>Orissa State Electricity Board v. Orissa Tiles Limited</i> (1993) Supp 3 SCC 481	On minimum-guarantee charge (under the 1910 Act).	SCJ-035
206	<i>Oryx Fisheries Pvt. Ltd. v. Union of India</i> (2010) 13 SCC 427	A show-cause notice that pronounces the charge already 'proved beyond doubt' prejudices the issue and is bad; the noticee must not be met with a concluded mind.	SCJ-163
207	<i>P. Mohanan Pillai v. State of Kerala</i>	Cited in the string of malice-in-law authorities at para 42.	SCJ-126
208	<i>Padmaraje R. Kadambande v. CIT</i> 1992 (3) SCC 432	A marginal heading (e.g. 'compensation') does not control the operation or interpretation of the section.	SCJ-059
209	<i>Pareena Swarup v. Union of India</i> (2008) 14 SCC 107	Discussed in the context of tribunals created to exercise functions earlier performed by regular judicial forums (PMLA Adjudicating Authority).	SCJ-130
210	<i>Petitioner's further catena on alternative remedy & disputed facts</i> Harbanslal Sahnia (2003) 2 SCC 107; Popcorn Entertainment (2007) 9 SCC 593; ABL International (2004) 3 SCC 553; Zonal Manager, Central Bank v. Devi Ispat (2010) 11 SCC 186; Gunwant Kaur (1969) 3 SCC 769; Century Spinning (1970) 1 SCC 582; Babubhai Muljibhai Patel (1974) 2 SCC 706; Arezzo Developers 2010 (6) ADJ 315; Oriental Bank of Commerce 2008 (3) ADJ 1; Ashok Kumar 2008 (6) ADJ 660; Himmatlal Harilal Mehta AIR 1954 SC 403; and, on levy requiring statutory authority, Ahmedabad Urban Development Authority (1992) 3 SCC 285, A.P. Pollution Board v. A.P. Rayons (1989) 1 SCC 44, Sri Niwas Budhaulia 2006 (1) AWC 930	Cited by the petitioner for (a) alternative remedy being no bar and writ jurisdiction over disputed facts, and (b) a levy requiring specific statutory authority.	SCJ-032
211	<i>Pratap Chandra Mehta v. State Bar Council of Madhya Pradesh & Ors.</i> (2011) 9 SCC 573	Courts should give delegated-legislation provisions purposive construction to perpetuate the parent Act's object, while ensuring the rules remain within the field circumscribed by that Act.	SCJ-147
212	<i>PTC India Ltd. v. CERC</i>	Regulations, as part of the regulatory framework, intervene in and even override existing contracts between regulated entities.	SCJ-001
213	<i>Punjab Electricity Board v. Zora Singh</i>	Cited in the string of malice-in-law authorities at para 42.	SCJ-126
214	<i>Punjab State Electricity Board Ltd. v. Zora Singh & Others</i> JT 2005 (7) SC 258	The Board must supply electrical energy to consumers within a reasonable period, in order of seniority of application, per its own circulars/regulations, and must notify applicants of reasons for any delay.	SCJ-067
215	<i>R.C. Cooper v. Union of India</i> (1970) 1 SCC 248 : AIR 1970 SC 564	A company registered under the Companies Act has a separate legal personality distinct from its shareholders.	SCJ-158

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
216	Raghunath Rai Bareja & Anr. v. Punjab National Bank & Ors.	The first and foremost rule of construction is the literal rule; where the provision is unambiguous, the court reads the statute as it is without adding words (approving Hiralal Ratanlal, Harshad S. Mehta and Patangrao Kadam).	SCJ-025
217	Rajiv Thapar v. Madan Lal Kapoor (2013) 3 SCC 330	Paragraph 30 sets four steps for quashment under Section 482 Cr.P.C.: sterling material of the accused; that material ruling out the accusations; it being unrefuted or not justifiably refutable; and trial being an abuse of process. If all are affirmative, the High Court should quash.	SCJ-342
218	Ramakrishna Poultry (P) Ltd. v. R. Chellappan (2009) 16 SCC 743	Where a landowner purchased land after a transmission-line survey/routing process was already underway, the appropriate remedy is a practical accommodation (e.g. raising line height/clearance) rather than re-routing an established transmission line, especially given the larger public interest.	SCJ-097
219	Ramchandra Dagdu Sonavane v. Vithu Hira Mahar (2009) 10 SCC 273	The doctrine of res judicata (including constructive res judicata under Explanation IV, s.11 CPC) applies broadly, barring re-litigation of matters that were or ought to have been raised in an earlier proceeding.	SCJ-097
220	Ramesh Balkrishna Kulkarni v. State of Maharashtra (1985) 3 SCC 606	Quoted in the reproduced Khyali Singh order: a 'public servant' is an authority appointed by Government or a semi-governmental body, in the pay of the same, discharging duties under government rules.	SCJ-543
221	Ramesh Singh v. Cinta Devi (1996) 3 SCC 142	A vested right of appeal under the old Motor Vehicles Act is not dislodged by the new Act; the appellant may appeal without the pre-deposit required by the proviso to s.173 of the new Act.	SCJ-008
222	Rana Girders Ltd. (excise dues case)	A purchaser's statutory-liability undertaking limited to liabilities 'arising out of the land/building/machinery' does not extend to excise dues, which arise from manufacturing activity, not the property itself.	SCJ-098
223	Rashid Ahmed v. Municipal Board, Kairana	Existence of an adequate legal remedy is a factor in the grant of writs, not an absolute bar.	SCJ-706
224	Raymond Ltd. & Anr. v. M.P. Electricity Board & Ors. (2001) 1 SCC 534	Where the consumer has not committed to a fixed minimum-guarantee sum, the licensee can enforce minimum-guarantee charges only by ensuring the minimum guaranteed supply; if the licensee fails to supply, the consumer is exonerated from paying minimum-guarantee charges.	SCJ-030
225	Raymond Ltd. v. State of Chhattisgarh & Ors. (2007) 3 SCALE 341	Interpretation of a term in one statute cannot be done with reference to its definition contained in another statute.	SCJ-091
226	Raymonds Ltd. v. M.P. State Electricity Board (2001) 1 SCC	On tariff/charges payable to an electricity board and the interpretation of the governing arrangement.	SCJ-156
227	Reliance Infrastructure v. State of Maharashtra (2019) 3 SCC 352	Regulatory decisions of expert bodies should be accorded deference unless shown to be wholly irrational, ultra vires the parent statute, or violative of fundamental rights.	SCJ-110
228	RPJ Mineral Pvt. Ltd. v. S.K. Saxena, Official Liquidator SLP (Civil) No. 19132 of 2006	Interim order (9-2-2007) that no money be disbursed during the pendency of the special leave petition arising out of these liquidation proceedings.	SCJ-152
229	S. Sethuraman v. R. Venkataraman & Ors. AIR 2007 SC 2499	If jurisdiction cannot be conferred by consent, consent equally cannot clothe an authority to exercise jurisdiction in an illegal manner.	SCJ-049

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
230	<i>S.J.S. Business Enterprises (P) Ltd. v. State of Bihar</i> (2004) 7 SCC 166	A writ petition is not automatically barred merely because a parallel civil suit was filed and later withdrawn; the court may call upon the party to elect between remedies rather than dismissing outright.	SCJ-097
231	<i>S.N. Mukherji v. Union of India</i> AIR 1990 SC 1984	Proposition not recorded.	SCJ-641
232	<i>S.N. Pandey v. Union of India</i> (2012) 8 SCC 261	Upholds the validity of the Permanent Lok Adalat mechanism for deciding disputes involving public utility services as an alternative dispute-resolution forum.	SCJ-019
233	<i>S.R. Venkatraman v. Union of India</i> AIR 1979 SC 49	Malice in law means an act done wrongfully and without reasonable/probable cause, though not necessarily with ill-will; an order founded on non-existent or misrepresented facts is vitiated by malice in law.	SCJ-126
234	<i>S.S. Balu & Another v. State of Kerala & Others</i> 2009 (2) SCC 479	Delay defeats equity.	SCJ-068
235	<i>S.S. Bola v. B.D. Sardana</i> (1997) 8 SCC 522 : AIR 1997 SC 3127	A legislature cannot directly override a judicial decision but, under its plenary powers, may enact a law fundamentally altering the provisions that were the basis of the decision; judicial review is a basic feature.	SCJ-255
236	<i>Sampelly Satyanarayana Rao v. Indian Renewable Energy Development Agency Ltd.</i> (2016) 10 SCC 458	A post-dated cheque given as security for loan-installment repayment matures into an instrument for a legally enforceable debt once the installment falls due and remains unpaid; the true test is whether an enforceable debt exists or has matured, not the 'security' label.	SCJ-132
237	<i>Sanjay Kumar Rai v. State of Uttar Pradesh</i> (2022) 15 SCC 720	An order refusing discharge is not an interlocutory order barred by Section 397(2) Cr.P.C. The trial court is not a post office on a discharge application; it must sift the material for sufficient ground to try. The High Court may examine the merits of a revision against refusal of discharge.	SCJ-342
238	<i>Satender Kumar Antil v. Central Bureau of Investigation & Another</i> (2022) 10 SCC 51	Bail applications are to be considered in accordance with the principles laid down in this decision (guidelines on arrest, appearance, and expedition of bail).	SCJ-279
239	<i>Seth Banarsi Dass (dead) by LRs v. District Magistrate and Collector, Meerut</i> (1996) 2 SCC 689	Recovery proceedings are equivalent to execution proceedings under the CPC; an auction sale without deciding objections is a material irregularity vitiating the sale.	SCJ-170
240	<i>Shankar Ramchandra Abhyankar v. Krishnaji Dattatraya Bapat</i> (1970) 1 SCR 322	The expression 'appeal', used in the context of revisional jurisdiction, is one mode of exercising a statutorily conferred power.	SCJ-138
241	<i>Sharad Kumar Sanghi v. Sangita Rane</i> (2015) 12 SCC 781	Cited by the petitioner with the other director-liability authorities; the Court did not extract or discuss it.	SCJ-665
242	<i>Sharma Transport v. Government of A.P.</i> (2002) 2 SCC 188 : AIR 2002 SC 322	There can be no promissory estoppel against a statute; a concession, even for a fixed period, can be withdrawn in public interest, and the doctrine requires a clear, positive foundation laid in the pleadings.	SCJ-155

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
243	<i>Shiba Shankar Mohapatra v. State of Orissa</i> (2010) 12 SCC 471	Cited by the petitioner; no ratio extracted.	SCJ-552
244	<i>Shiv Dass v. Union of India & Others</i> AIR 2007 SC 1330	Reiterates the same delay/laches principle.	SCJ-068
245	<i>Shreyas Papers (P) Ltd. (Karnataka Sales Tax Act charge/notice case)</i>	A statutory charge is unenforceable against a transferee without actual or constructive notice of the charge; here the purchaser had no notice of sales-tax arrears at the time of sale.	SCJ-098
246	<i>Shri Sitaram Sugar Company Ltd. & Anr. v. Union of India & Ors.</i> (1990) 3 SCC 223	Any act of the repository of power is open to challenge if in conflict with the Constitution, the governing Act, or general principles of law, or so arbitrary/unreasonable that no fair-minded authority could have made it.	SCJ-061
247	<i>Sir Chunilal V. Mehta & Sons Ltd. v. Century Spg. & Mfg. Co. Ltd.</i> AIR 1962 SC 1314	Test for a 'substantial question of law': one of general public importance or directly and substantially affecting the parties' rights, not finally settled or free from difficulty.	SCJ-010
248	<i>Smt. Shakuntala Devi v. Delhi Electric Supply Undertaking & Ors.</i> (1995) 2 SCC 369	A statutory electricity authority has a duty to maintain its electric installations and lines in proper condition so as to avoid any threat to the lives of people.	SCJ-019
249	<i>Snehadeep Structures Pvt. Ltd. v. Maharashtra Small-Scale Industries Development Corporation Ltd.</i> (2010) 3 SCC 34	Almost all definitions of 'appeal' involve removal of a cause from an inferior to a superior court; an arbitrator deriving authority from private agreement does not fit the ordinary court hierarchy.	SCJ-138
250	<i>Somesh Tiwari v. Union of India</i> (2009) 2 SCC 592	Malice in law/fact distinction and its application to vitiate administrative action taken on an improper or misrepresented basis.	SCJ-126
251	<i>South Eastern Coalfields Ltd. v. State of M.P. & Ors.</i> (2003) 8 SCC 648	A party finally entitled to a monetary relief is entitled to be compensated by interest, payable even in equity/restitution (Section 144 CPC principle).	SCJ-073
252	<i>Southern Power Distribution Co. of Telangana Ltd. v. Gopal Agarwal</i> (2018) 12 SCC 644	Considered in Telangana SPDCL v. Srigdhaa Beverages on the liability of a subsequent/auction purchaser for the previous owner's electricity dues.	SCJ-271
253	<i>Southern Power Distribution Company of Telangana Ltd. v. Gopal Agarwal & Ors.</i> Civil Appeal No. 1918 of 2016	An auction purchaser (per Isha Marbles) cannot be called upon to clear a past owner's arrears as a precondition for a power connection.	SCJ-054
254	<i>Sripati Singh v. State of Jharkhand</i> 2021 SCC OnLine SC 1002	A cheque issued as loan-repayment security matures for presentation once the loan is not repaid by the due date; a security cheque is not a 'worthless piece of paper' in all circumstances.	SCJ-132

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
255	<i>St. John's Teachers Training Institute v. Regional Director, National Council for Teacher Education & Anr.</i> (2003) 3 SCC 321	Delegated legislation may supplement, but not supplant, the parent enabling Act; what is permitted is delegation of ancillary/subordinate legislative functions or filling up of details.	SCJ-147
256	<i>State Bank of India v. V. Ramakrishnan & Anr.</i> (2018) 17 SCC 394	The s.14 IBC moratorium applies only to the Corporate Debtor and its own assets/proceedings, not to a personal guarantor of the Corporate Debtor; a plain reading of s.14 conspicuously omits any mention of the personal guarantor.	SCJ-090
257	<i>State Load Despatch Centre v. GERC</i> 2015 SCC OnLine APTEL 50	'Truing up' means the adjustment of actual amounts incurred against the estimated/projected amounts determined under the ARR.	SCJ-010
258	<i>State of A.P. v. National Thermal Power Corporation Ltd.</i> (2002) 5 SCC 203	Electricity is 'goods'; a purchaser is liable to pay for it, the quantum and time of payment being ascertained post facto by agreement or statute.	SCJ-009
259	<i>State of Bihar & Others v. Subhash Singh</i> 1997 (4) SCC 430	State action must be carried out in accordance with the Constitution and within legal limits; judicial review can examine constitutionality and procedural legality of administrative action.	SCJ-061
260	<i>State of Bombay v. Supreme General Films Exchange Ltd.</i> AIR 1960 SC 980	To the same effect on the vested right of appeal.	SCJ-008
261	<i>State of Karnataka & Anr. v. H. Ganesh Kamath & Ors.</i> (1983) 2 SCC 402	It is a well-settled principle that conferment of rule-making power does not enable the rule-making authority to make a rule travelling beyond, or inconsistent with, the enabling Act.	SCJ-147
262	<i>State of Kerala v. V.R. Kalliyankutty</i> (1999) 3 SCC 657	On the meaning and scope of 'dues' / amounts recoverable.	SCJ-252
263	<i>State of Maharashtra v. Laljit Rajashi Shah & Ors.</i> AIR 2000 SC 937	A person deemed a public servant under an analogous 'deemed to be public servant' provision for Maharashtra Cooperative Societies employees was not a public servant for purposes of the (former) Prevention of Corruption Act, 1947.	SCJ-091
264	<i>State of Orissa v. Bimal Kumar Mohanty</i> AIR 1994 SC 2296	Suspension should not be passed as an administrative routine or mechanically; it requires consideration of the gravity of alleged misconduct and the evidence, applying the disciplinary authority's mind.	SCJ-116
265	<i>State of Orissa v. Mamata Mohanty</i> (2011) 3 SCC 436	Article 14 is not meant to perpetuate illegality and does not envisage negative equality; an inadvertent benefit granted to others does not confer a right to the same relief.	SCJ-123
266	<i>State of Orissa v. Pyari Mohan Samantaray & Others</i> AIR 1976 SC 2617	Reiterates that unexplained delay disentitles a petitioner to discretionary relief under Article 226.	SCJ-068
267	<i>State of Rajasthan v. J.K. Synthetics Ltd.</i> 2011 (12) SCC 518	Where a mining rule prescribing interest on delayed royalty is amended, any lease-deed term prescribing a lower rate must yield to the amended rule from the date of amendment, since the rule prevails over contractual stipulations.	SCJ-134
268	<i>State of T.N. & Anr. v. P. Krishnamurthy & Ors.</i> (2006) 4 SCC 517	Courts must consider the nature, object and scheme of the enabling Act when assessing subordinate legislation's validity; where inconsistency is not with a specific provision but with the object/scheme of the parent Act, the court should proceed with caution before declaring invalidity.	SCJ-147

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
269	<i>State of W.B. v. Rupa Ice Factory (P) Ltd.</i> (2004) 10 SCC 635	Where the finding is that a consumer tapped electric energy directly bypassing the meter circuit, s.26(6)'s reference-to-Electrical-Inspector procedure has no application; following M.P. Electricity Board v. Basantibai and JMD Alloys v. Bihar SEB, tampering/theft/pilferage cases fall outside s.26's scope entirely.	SCJ-151
270	<i>State of West Bengal v. Dabasish Mukherjee</i> (2011) 14 SCC 187	Equality before law is a positive concept, not enforceable negatively; an inadvertent illegal benefit to one person does not confer a legal right on others to the same benefit.	SCJ-123
271	<i>Sub-Divisional Officer (P), UHBVNL v. Dharam Pal</i> (2006) 12 SCC 222	In cases of meter tampering, there is no scope for reference to an Electrical Inspector under s.26(6).	SCJ-151
272	<i>Sudha v. President, Advocates Association, Chennai and Ors.</i> (2010) 14 SCC 114	The legal profession is a solemn, noble calling distinct from other occupations, given its role in the administration of justice.	SCJ-133
273	<i>Sukhdev Singh & Ors. v. Bhagatram Sardar Singh Raghuvanshi & Anr.</i> (1975) 1 SCC 421	Statutory bodies cannot use rule/regulation-making power to enlarge their powers beyond the scope intended by the legislature; delegated rules/regulations establish patterns of conduct subordinate to the statute.	SCJ-147
274	<i>Supreme Court Bar Association v. Union of India</i> (1998) 4 SCC 409	The Supreme Court's power under Article 142 cannot be used to ignore substantive statutory provisions; it is a residuary power, supplementary and complementary to powers conferred by statute, to do complete justice.	SCJ-152
275	<i>Sushila Aggarwal v. State (NCT of Delhi)</i>	Governing law on the grant and duration of anticipatory bail under s.438 Cr.P.C.	SCJ-131
276	<i>Swarn Singh Chand v. Punjab State Electricity Board</i>	Cited in the string of malice-in-law authorities at para 42, in an electricity-board context.	SCJ-126
277	<i>Tamil Nadu Generation and Distribution Corporation Ltd. v. PPN Power Generating Company Pvt. Ltd.</i> (2014) 11 SCC 53	Adjudicatory functions ought not to be conducted by a State Commission in the absence of a judicial Member, at least for disputes not fairly relative to tariff fixation or advisory functions.	SCJ-130
278	<i>Tata Power Co. Ltd. v. Reliance Energy Ltd.</i> (2008) 10 SCC 321	The Electricity Act, 2003 is a consumer-friendly statute enacted as a self-contained comprehensive legislation.	SCJ-009
279	<i>Tata Power Western Odisha Distribution Ltd. v. Jagannath Sponge Private Ltd.</i> Civil Appeal No. 5556 of 2023	Following Raman Ispat, a power distribution company cannot insist on payment of the corporate debtor's arrears (to be paid per the IBC waterfall mechanism) as a precondition for granting an electricity connection to the successful resolution applicant.	SCJ-054
280	<i>Telangana State Southern Power Distribution Co. Ltd. v. Srigidhaa Beverages</i> (2020) 6 SCC 404	Electricity dues, being statutory in character under the Electricity Act, 2003 and the terms and conditions of supply, cannot be waived and do not partake of the character of purely contractual dues; where the auction notice sells the property "as is where is, whatever there is and without recourse" and puts the purchaser to notice, the liability to pay the last owner's electricity dues rests on the auction...	SCJ-271
281	<i>Textile Labour Association v. Official Liquidator</i> (2004) 9 SCC 741	By operation of ss.529 and 529-A, workmen become secured creditors (or unsecured preferential creditors, absent a contractual secured creditor) and their dues rank pari passu with secured creditors, overriding s.530 and all other claims; a mandamus (or Article 142 power) cannot ignore substantive statutory provisions, so a supplier's dues must still be worked out under ss.529/529-A.	SCJ-152

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
282	<i>The Management of Hotel Imperial, New Delhi v. Hotel Workers' Union</i> AIR 1959 SC 1342	The power to suspend is a creature of statute or contract, to be exercised keeping in view the letter and spirit of the statute.	SCJ-116
283	<i>The State of Orissa v. Madan Gopal Rungta</i>	Article 226 cannot be used to grant interim relief as the only and final relief; interim relief is available only as ancillary to a final relief obtainable in a proceeding actually pending and to be decided on merits before that court.	SCJ-095
284	<i>Tinsukhia Electricity Supply Co. Ltd. v. State of Assam & Ors.</i> (1989) 3 SCC 709	A statute must be construed so as to make it effective and operative ('ut res magis valeat quam pereat'); courts should avoid interpretations reducing a provision to futility.	SCJ-111
285	<i>Tirupati Balaji Developers (P) Ltd. v. State of Bihar</i> (2004) 5 SCC 1	Appeal implies removal of a cause to a superior forum having jurisdiction to reverse, confirm, annul or modify the lower forum's decree/order, with corrective directions binding on the forum below.	SCJ-138
286	<i>U.P. Power Corporation Ltd. and another v. Lohia Brass (P) Ltd. and others</i> (2006) 7 SCC 220	Each Meter Reading Inspection Report violation of peak-hour consumption restrictions attracts separate penalty; the Allahabad High Court's contrary interpretation (one penalty per report) was incorrect.	SCJ-128
287	<i>U.P. Power Corporation Ltd. and others v. Bonds and Beyonds (India) (P) Ltd.</i> (2007) 7 SCC 779	Reaffirms Lohia Brass: each peak-hour-restriction violation attracts separate penalty.	SCJ-128
288	<i>U.P. Power Corporation Ltd. v. M/s Lohia Brass Pvt. Ltd. & Others</i> Decided 25.7.2006	Peak-hour-restriction violation penalty is to be imposed per inspection report (first violation and subsequently for every violation), settling the correct computation formula.	SCJ-122
289	<i>U.P. Rajkiya Nirman Nigam Ltd. v. Indure Pvt. Ltd.</i> AIR 1996 SC 1373	(Same principle as Karnal Improvement Trust — acquiescence does not confer jurisdiction.)	SCJ-049
290	<i>UCO Bank v. Official Liquidator</i>	Section 529-A overrides all other claims of creditors even where a decree has been passed by a court.	SCJ-152
291	<i>Uma Nath Pandey & Ors. v. State of U.P. & Anr.</i> (2009) 12 SCC 40	Natural justice is another name for common-sense justice; adherence to its principles is of supreme importance whenever a quasi-judicial body or an administrative action involving civil consequences is in issue.	SCJ-092
292	<i>Union of India v. Jai Prakash Singh</i> (2007) 10 SCC 712	Cited by the petitioner; no ratio extracted.	SCJ-552
293	<i>Union of India v. Jyoti Prakash Mitter</i> AIR 1971 SC 1093	Article 217(3) does not guarantee a right of personal hearing; a mere denial of an oral representation does not, without more, vitiate proceedings.	SCJ-032
294	<i>Union of India v. Madras Bar Association</i> (2010) 11 SCC 1	Tribunals substituting for court jurisdiction should possess the same independence/security/capacity as the courts they replace; members discharging judicial functions must be drawn from sources possessing legal expertise.	SCJ-130
295	<i>Union of India v. Mohd. Ramzan Khan</i> 1991 (1) SCC 588	A ruling requiring furnishing of an inquiry report to a delinquent employee was expressly made prospective; illustrates that prospective overruling requires an express direction by the Supreme Court.	SCJ-128

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
296	<i>Union of India v. Prakash P. Hinduja & Another</i> AIR 2003 SC 2612	Section 482 Cr.P.C. power to quash criminal proceedings may be exercised (sparingly, with circumspection) where the FIR/complaint even taken at face value discloses no offence, or the uncontroverted allegations/evidence do not disclose commission of any offence, or there is an express legal bar to continuance of proceedings.	SCJ-114
297	<i>Union of India v. R. Gandhi, President, Madras Bar Association</i> JT 2010 (5) SC 553	Enumerates the distinguishing features of Courts versus Tribunals: Tribunals are statutorily created to adjudicate disputes of a specified nature and may combine judicial and technical members, unlike Courts which are exclusively manned by Judges and governed by CPC/Evidence Act procedure.	SCJ-138
298	<i>Union of India v. Rallia Ram</i> AIR 1963 SC 1685	Interest is payable in equity only where circumstances attract equitable jurisdiction, or under the Interest Act, or where an agreement/statute/trade usage so provides.	SCJ-073
299	<i>Union of India v. S.C. Parashar</i> (2006) 3 SCC 167	Cited by the petitioner on 01.11.2023: an amalgam of minor and major penalties is contrary to the principle in Parashar. The reserved judgment did not apply or decide that point.	SCJ-548
300	<i>Union of India v. Watkins Mayor and Co.</i> AIR 1966 SC 275	Interest is claimable only where there is an agreement, trade usage having force of law, or a substantive statutory provision; equity alone cannot justify an interest claim.	SCJ-073
301	<i>United Commercial Bank Ltd. v. Their Workmen</i> AIR 1951 SC 230	No acquiescence or consent can give a jurisdiction to a court of limited jurisdiction which it does not possess.	SCJ-049
302	<i>United India Insurance Co. Ltd. v. Ajay Sinha</i>	A Permanent Lok Adalat does not act merely as an arbitrator whose award may be challenged; Parliament has given it an adjudicatory role to decide the matter.	SCJ-025
303	<i>United India Insurance Co. Ltd. v. Lehu & Ors.</i> (2003) 3 SCC 338	(Cited alongside Saurashtra Chemicals in support of the petitioners' 'subject to' argument.)	SCJ-053
304	<i>Uttar Pradesh Power Corporation Ltd. v. National Thermal Power Corporation Ltd. & Ors.</i> (2011) 12 SCC 400	The Central Electricity Regulatory Commission is an expert body for tariff determination; courts should ordinarily not interfere with tariff determinations.	SCJ-130
305	<i>V. Sasidharan v. M/s Peter and Karunakar</i> AIR 1984 SC 1700 / (1984) 4 SCC 230	The office of a lawyer or firm of lawyers is not a 'commercial establishment' since lawyers traditionally do not carry on trade or business or render services to 'customers'.	SCJ-133
306	<i>V.K. Majotra v. Union of India</i> (2003) 8 SCC 40	Cited by the petitioner; no ratio extracted.	SCJ-552
307	<i>V.S. Achuthanandan v. R. Balakrishna Pillai & Ors.</i> (1994) 4 SCC 299	Earlier round of the same litigation: set aside a High Court order permitting withdrawal of prosecution against a co-accused (A5), restoring the Special Judge's order declining consent for withdrawal.	SCJ-141
308	<i>Virender Chaudhary v. Bharat Petroleum Corporation & Ors.</i> 2009 (1) SCC 297	Follows the same delay/laches principle.	SCJ-068
309	<i>Vishal Agrawal v. Chhattisgarh State Electricity Board</i> (2014) 3 SCC 696	Section 151's complaint route does not exclude FIR and police investigation; offences under the Electricity Act are tried by the Cr.P.C., so a charge-sheet for section 135 is competent (paras 20, 21 and 23 as extracted).	SCJ-665

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
310	<i>Vitthalbhai Narangbhai Patel v. CST</i> AIR 1967 SC 344	To the same effect on the vested right of appeal.	SCJ-008
311	<i>Waman Rao v. Union of India</i> 1981 (2) SCC 362	Applied prospective overruling to statutes declared ultra vires.	SCJ-128
312	<i>Whirlpool Corporation (established exceptions to alternative remedy)</i>	The alternative-remedy rule does not operate as an absolute bar where the writ petition seeks enforcement of a fundamental right, alleges violation of natural justice, or challenges an order/proceeding as wholly without jurisdiction or the vires of an Act.	SCJ-112
313	<i>Yunus v. State of Maharashtra & Others</i> 2009 (3) SCC 281	Explains the doctrine of laches (per Lindsay Petroleum Co. v. Hurd): where it would be practically unjust to give a remedy because of conduct amounting to waiver, or where delay has changed the other party's position, lapse of time is material.	SCJ-068
314	<i>Zameer Ahmed Latifur Rehman Sheikh v. State of Maharashtra</i> (2010) 5 SCC 246	Same interpretive principle — statutory provisions read as a whole, not piecemeal.	SCJ-113
315	<i>Zandu Pharmaceutical Works Ltd. v. Mohd. Sharaful Haq</i> 2005 SCC (Cri) 283	At the quashing stage, only a prima facie case is to be examined; disputed factual questions must go to trial.	SCJ-142

Table 3 — Other courts 44 authorities · 49 citations · 0 used in 5+ cases · 4 used in 2+ cases

High Courts other than Allahabad, appellate tribunals (APTEL, NCLAT), the Privy Council and House of Lords, and a handful of non-court texts (dictionary / treatise) recorded in the summaries.

#	USED IN	AUTHORITY	COURT	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
1	3 CASES	<i>Paschimanchal Vidyut Vitran Nigam Ltd. v. Raman Ispat Pvt. Ltd. (NCLAT)</i> Company Appeal (AT) (Insolvency) No. 639 of 2018, decided 15 May 2019 Followed 2 · Distinguished 1	National Company Law Appellate Tribunal	PROPOSITION 1 · USED IN 2 CASES Section 238 of the I&B Code, being a subsequent parliamentary law with a non-obstante clause, has overriding effect on all laws in force including the Electricity Act, 2003 and the rules/regulations framed thereunder where inconsistent; the Electricity Act cannot override the Code. The licensee is granted liberty to lodge its electricity dues with the Liquidator. PROPOSITION 2 · USED IN 1 CASE Once a liquidation order is passed against a Corporate Debtor, the District Collector cannot separately recover/auction the Corporate Debtor's property for electricity dues under ss.173/174 of the Electricity Act, 2003, since IBC (a later Parliamentary Act) overrides; the electricity authority's remedy is to file a claim before the liquidator.	SCJ-090 SCJ-267 SCJ-270
2	2 CASES	<i>M/s JMD Alloys Limited v. Bihar State Electricity Board</i> AIR 2009 (Patna) 26 Followed 2	Patna High Court	PROPOSITION USED Sending a disputed Secure Meter for testing to its manufacturer's own accredited laboratory is likely to create a strong bias in favour of the supplier/manufacturer, even if the laboratory is accredited.	SCJ-059 SCJ-071
3	2 CASES	<i>Modern Syntax (I) Ltd. v. Debts Recovery Tribunal, Jaipur</i> AIR 2001 Raj 170 Relied on 2	Rajasthan High Court	PROPOSITION 1 · USED IN 1 CASE The effect of a relief-undertaking notification is that any right, privilege, obligation or liability accrued before the undertaking was declared a relief undertaking, and any remedy for its enforcement, stands suspended, and all proceedings related thereto pending before any court/tribunal/officer/authority are stayed during the currency of the notification. PROPOSITION 2 · USED IN 1 CASE The provisions of a Relief Undertaking Act, being meant to sub-serve public interest and prevent unemployment, are to be given a liberal interpretation.	SCJ-038 SCJ-246

#	USED IN	AUTHORITY	COURT	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
4	2 CASES	<i>West Bengal State Electricity Distribution Co. Ltd. v. Sri Vasavi Industries Ltd.</i> MAT 646 of 2022, Calcutta High Court, decided 12 July 2022 Followed 2	Calcutta High Court (DB)	PROPOSITION USED In case of conflict with State legislation the IBC prevails over the State Electricity Regulation; on extinguishment of the right to recover pre-resolution dues, if a duty to supply is cast under the Electricity Act, 2003, the supplier cannot escape performing that duty and must provide the connection.	SCJ-267 SCJ-270

Cited in a single case (40 authorities — included for completeness)

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
5	<i>Abhimanyu Mazumdar v. Superintending Engineer</i> AIR 2011 Cal 64 · Calcutta High Court	A person in settled possession is entitled to electricity.	SCJ-293
6	<i>Archana Devi v. Chairman, Bihar State Electricity Board</i> 2012 (4) PLJR 701 · High Court of Patna	Under the Supply Code, no obligation is cast on a purchaser to enquire into or clear pending electricity dues unless she is a relative of the defaulting consumer; the third proviso to Clause 4.1 requires clearance only from such a relative-purchaser.	SCJ-268
7	<i>Awadesh S. Pandey v. Tata Power Corporation Ltd.</i> AIR 2007 Bom 52 · Bombay High Court	Section 56(2)'s two-year bar limits only the special coercive remedy of disconnection under s.56(1); it does not extinguish the underlying debt or bar recovery of a sum falling within two years of the demand, and does not preclude independent recovery by suit.	SCJ-122
8	<i>B.N. Magon v. South Delhi Municipal Corporation</i> 217 (2015) DLT 55 · Delhi High Court	Cited by petitioner in support of the profession/commercial-activity distinction.	SCJ-133
9	<i>Bharat Barrel & Drum Manufacturing Co. Pvt. Ltd. v. Municipal Corporation of Greater Bombay</i> AIR 1978 Bom 369 · Bombay High Court	There is no limitation for making a demand by way of supplementary bill; constructive res judicata does not apply to bar a supplementary demand for previously unclaimed misuse charges.	SCJ-122
10	<i>Bimal Kumar Gupta v. Special Police Establishment Lokayukt</i> 2001 (1) MPHT 330; (2001) 3 JLJ 2 · Madhya Pradesh High Court (Single Judge)	Employees of the Madhya Pradesh State Electricity Board are not 'public servants' for purposes of prosecution under the Prevention of Corruption Act, since s.81 of the 1948 Act only deems them public servants under IPC s.21, and a 'deemed provision' cannot extend to another statute (relying on State of Maharashtra v. Laljit Rajashi Shah).	SCJ-091
11	<i>Black's Law Dictionary (5th Edn.)</i> Dictionary	'Temporary' is that which is to last for a limited time only, as distinguished from that which is perpetual or indefinite in its duration.	SCJ-166
12	<i>Broom's Legal Maxims (10th Edn.), p. 191</i> Treatise	No man shall take advantage of his own wrong — recognised in courts of law and of equity.	SCJ-001
13	<i>Chandler v. D.P.P.</i> [1964] A.C. 763 · House of Lords	Side notes/marginal headings cannot be used as an aid to statutory construction; they are mere catchwords, not enacted as part of the Act.	SCJ-059

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
14	<i>Citizen Forum Maharashtra v. State of Maharashtra</i> W.P. No. 3701 of 2007, Bombay High Court (Nagpur Bench), decided 12.2.2008 · Bombay High Court	Upheld the power of a distribution licensee to appoint a distribution franchisee for consumer benefit.	SCJ-136
15	<i>Colonial Sugar Refining Co. Ltd. v. Irving</i> (1905) AC 369 · Privy Council	The right of appeal is a substantive right that vests on the initiation of proceedings; only procedural statutes may be retrospective, not those affecting the right of appeal.	SCJ-008
16	<i>Dakshin Haryana Bijli Vitran Nigam Ltd. & Ors. v. Megh Raj</i> Revision Petition No. 3144 of 2007, decided 11.9.2008 · National Consumer Disputes Redressal Commission	The power to compound under Section 152 presupposes a pending prosecution, acceptance of the sum amounting to an acquittal.	SCJ-003
17	<i>Delhi Cloth & General Mills Co. Ltd. v. Income Tax Commissioner, Delhi</i> ILR 9 Lahore 284 · Privy Council	Only a statute dealing with procedure may have retrospective effect; a statute conferring substantive rights, including the right of appeal, does not.	SCJ-008
18	<i>Eastern Power Distribution Co. of Andhra Pradesh Ltd. v. Maithan Alloys Ltd. (NCLAT)</i> Company Appeal (AT) (Insolvency) No. 961 of 2021 · National Company Law Appellate Tribunal	A successful auction purchaser in the liquidation of a corporate debtor is not liable to pay the electricity dues (pre-CIRP and during CIRP) of the corporate debtor; the licensee's pre-CIRP dues are operational debt to be paid under Section 53 and the licensee cannot realise them from the auction purchaser, that being in conflict with the statutory scheme of the Code.	SCJ-270
19	<i>Hotel Adityaz Ltd. v. M.P. Kshetra Vidyut Vitran Co. Ltd.</i> AIR 2016 (NOC) 39 (M.P.) · Madhya Pradesh High Court	Theft cases fall only under Section 135, and Section 126 has no application to them.	SCJ-042
20	<i>JMD Alloys Ltd.</i> Patna High Court	Sending a meter for testing to the accredited laboratory of its manufacturer/supplier (Secure Meters Ltd.) is likely to create a strong bias on the part of the supplier/manufacturer.	SCJ-161
21	<i>K. Sambasivaraju v. M.V.S.R. Chandrayya Chetty</i> AIR 1967 Andhra Pradesh 87 · Andhra Pradesh High Court (Division Bench)	The word 'instrument' (as defined in s.2(14) of the Stamp Act, 1899) must receive an extensive meaning including an affidavit.	SCJ-246
22	<i>Kerala State Electricity Board v. Thomas Joseph @ Thomas M.J.</i> 2022 LiveLaw (SC) 1034 · Court not recorded	Proposition not recorded.	SCJ-369
23	<i>Kirpa Singh v. Ajaypal Singh</i> 1928 ILR 10 Lahore 165 (FB) · Lahore High Court	Right of appeal governed by law at the date of institution of the suit, not at the date of decision or of filing the appeal.	SCJ-008
24	<i>M/s Uttarakhand Power Corporation Ltd. v. M/s Shyam Baba Developers & Builders Pvt. Ltd.</i> Company Appeal (AT) No. 346 of 2023 · NCLAT	K.C. Ninan is not applicable where the electricity authority has filed a claim in liquidation proceedings.	SCJ-054
25	<i>M/s. Classic Color Lab v. Assistant Engineer and Others (Kerala HC)</i> 2014 (3) KLT 57 · Kerala High Court (Division Bench)	Following Seetaram Rice Mill, an assessment under s.126(6) for unauthorised use (there, industrial-tariff electricity misused for commercial purposes) must be at the rate applicable to the higher-tariff category actually used, not the consumer's nominal category; a purposive (not textual) interpretation of s.126 is required.	SCJ-147

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
26	<i>MCD v. H.D. Shourie</i> 53 (1994) DLT 1 · Delhi High Court	Electricity charges become due, and limitation for their recovery commences, only when the bill is raised — not from the date of underlying consumption/default.	SCJ-122
27	<i>McEldowney v. Forde</i> (1971) AC 632 · House of Lords	In reviewing subordinate legislation's validity, a court's task is threefold: determine the meaning of the enabling words, determine the meaning of the subordinate legislation, and decide whether the latter complies with the former.	SCJ-147
28	<i>Modern Terry Towels Ltd. v. Gujarat Electricity Board</i> AIR 2003 Guj 63 · Gujarat High Court	A broken seal, without more, does not establish theft of electricity.	SCJ-273
29	<i>Nana bin Aba v. Skeku bin Andu</i> (1908) ILR 32 Bom 337 · Bombay High Court	Followed Colonial Sugar Refining on the vested, substantive nature of the right of appeal.	SCJ-008
30	<i>NDMC v. Karam Chandra Thapar & Brothers Pvt. Ltd.</i> 162 (2009) DLT (decided 16.7.2009) · Delhi High Court	Liability to pay electricity charges is a statutory liability preserved by s.6 of the General Clauses Act; a bill can be issued even years after consumption.	SCJ-122
31	<i>North Delhi Power Ltd. (NDPL) v. DERC</i> 2007 ELR (APTEL) 193 · Appellate Tribunal for Electricity	Restricting a utility's claim by disallowing reasonably anticipated expenditure and deferring it to the truing-up exercise is not prudence; truing up only fills the gap between actual and anticipated expenses.	SCJ-010
32	<i>Order in Writ - C No. 15680 of 2013</i> Court not recorded	Proposition not recorded.	SCJ-993
33	<i>P. Ramanatha Aiyar's Advanced Law Lexicon (4th Edn.)</i> Dictionary	'Temporary' means lasting for a time only; existing or continuing for a limited time; not of long duration; not permanent; transitory.	SCJ-166
34	<i>Punjab State Electricity Board v. Guru Nanak Agriculture Engineering Works</i> AIR 2007 P&H 57 · Punjab and Haryana High Court	Relied on by the plaintiff for the proposition that the civil court's jurisdiction is not barred in such an electricity dispute.	SCJ-207
35	<i>Ramanathan v. State of Kerala</i> 1991 (1) KLJ 410 · Kerala High Court	The profession of a lawyer does not involve commercial or industrial activity, in the context of the Kerala Shops and Commercial Establishments Act.	SCJ-133
36	<i>Sakharam Narayan Kherdekar v. City of Nagpur Corporation</i> AIR 1964 Bombay 200 · Bombay High Court (Division Bench)	A lawyer's office is not a commercial establishment under the Bombay Shops and Establishments Act, given the personal-skill, intelligence, and individual-characteristics nature of the activity.	SCJ-133
37	<i>Sanjay Kumar Singh v. Bihar State Electricity Board</i> CWJC No. 16101 of 2010, decided 2 December 2010 · High Court of Patna	In view of Clause 4.15(vi), no fault can be found with the Board's stand that until dues are cleared it need not provide a connection.	SCJ-268
38	<i>Sarwottam Ispat Ltd. v. Southern Power Distribution Company of Telangana Ltd. & Ors.</i> 2016 (6) ALD 162 · High Court of Judicature at Hyderabad (DB)	Where pre-paid meters are not installed, it is mandatory for consumers to pay the security deposit demanded; a request for a prepaid meter when none is available does not entitle the consumer to a waiver, and Section 47 does not envisage waiver or an alternative mode of security (e.g. bank guarantee) enforceable by writ.	SCJ-053

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
39	<i>Sk. Jafar Ali v. West Bengal State Electricity Distribution Company Limited</i> AIR 2010 Cal 84 · Calcutta High Court	The phrase 'applicable for the relevant category of services' in s.126(6) should be construed as the rate applicable to the category the consumer belongs to, not the higher category of the unauthorised use.	SCJ-147
40	<i>Smt. Rekha Gupta v. Bihar State Electricity Board</i> 1999 (3) PLJR 222 · High Court of Patna	The liability to pay electricity dues is a personal contractual liability between the Board and the consumer and cannot be enforced against a third party such as a landlord or bona fide purchaser unconnected with the erstwhile consumer, as it is not a charge over the property; the Board cannot take advantage of its own wrong in allowing arrears to accumulate to refuse a new connection.	SCJ-268
41	<i>Tata Power Western Odisha Distribution Ltd. v. Jagannath Sponge Pvt. Ltd.</i> Civil Appeal No. 5556 of 2023 (order dated 11.09.2023) · Court not recorded	Proposition not recorded.	SCJ-535
42	<i>Tirumala Modern Rice Mill v. Transmission Corporation of A.P. Ltd. (AP Transco)</i> AIR 2007 AP 265 · Andhra Pradesh High Court	Parts XIV/XV of the Electricity Act do not contemplate provisional assessment of energy pilfered in theft cases; where a consumer accepts and deposits a provisional assessment without demur, no further liability/action may be taken.	SCJ-111
43	<i>Wonder Jupiterchit, In re</i> 1992 (74) CC 215 (Kerala) · Kerala High Court	Cited by a secured creditor on the scope of expenses recoverable from the liquidation estate.	SCJ-152
44	<i>Writ-C No. 22449 of 2008</i> order dated 14.11.2018 · Court not recorded	Proposition not recorded.	SCJ-741